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Virginia Board of Education, Business Meeting, Thursday, May 22, 2025

Date	Thursday, May 22, 2025
Place	Virginia Board of Education (Virginia Department of Education), Richmond, Virginia
Length	5h 35m (video)

- Official meeting video (VDOE, YouTube): https://www.youtube.com/watch?v=AKYxtk6uonc
- Board of Education meetings, agendas and minutes (VDOE): https://www.doe.virginia.gov/state-board-data-funding/virginia-board-of-education

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[00:11:28] Good morning. It is 9.01 and I will now call this meeting to order. As is customary for this board, we will begin our meeting with a moment of silence followed by the Pledge of Allegiance.

[00:12:15] Okay, I'll note that I have approved the remote participation of Mr. Hanson under the board's bylaws 2.2-3708.3b3 of the Code of Virginia because his principal residence is more than 60 miles from our meeting location today. This morning, I would like to welcome our newest board member, who was appointed by Governor Youngkin in April of this year.

[00:12:37] I'd like to welcome Dr. Beth Ackerman. Dr. Beth Ackerman lives in Campbell County and serves as the vice president of Rivermont Schools. She has a doctorate in educational leadership for the University of Virginia and an extensive background in special education.

[00:12:54] We are so happy to have you with us, Beth, and look forward to serving the children of our Commonwealth alongside you. At this time, I would invite you to say a few words if you'd like to. Sure, there's so much I could say. I'm just so excited to be here.

[00:13:10] My undergraduate degree actually licensed me in elementary education, and I did my student teaching at my dream classroom, cute little second graders at Sandusky Elementary for Lynchburg City Schools. And that's the classroom I always wanted.

[00:13:26] That was what I was going to do my whole life. And I experienced this phenomena with my supervisor of my student teaching, who expressed that I needed to keep moving on in my units and not waiting till every child got it.

[00:13:41] And that was a real struggle for me. And it was kind of the beginning of knowing my plans were going to change. And then on top of that, I graduated in January. This cooperating teacher, by the way, was going to retire, and she told me to come back at the end of the year, and I could work in that second grade dream classroom.

[00:13:59] but i graduated in january and i had to find a job then and this place called rivermont schools was hiring uh if you're not familiar with rivermont schools it's a school for kids with special needs with emotional behavior problems at the time we actually didn't have a lot of kids with autism this was the mid-90s and so um i went and interviewed for this job found out the teacher walked out on them that middle of the school year and i'll just never forget that first day on that job. I took it and I thought I'd do it for a semester. And I met eight boys that changed my heart and changed my field and changed my trajectory. Eight boys who showed up that day

[00:14:38] from kindergarten to eighth grade, a kindergarten who climbed my four drawer file cabinet and started dancing on my first day. My eighth grader who took off his sweatshirt and bare chested, laid down on the ground and took a nap. My first day, first thing in the morning, I had no idea what I was doing so then I just became passionate with the challenge with special education started special the special ed program at Liberty so I could go on and on but I'm just humbled that all those opportunities and those eight boys brought me here today so look forward to being able to participate so

[00:15:12] much so now we will move to approval of our agenda is there a motion to approve the agenda as presented i approve okay um miss kilgore ah dr northern aye dr ackerman um i don't know if mr hanson is on yet miss mcpherson mr rotherham miss holton aye and chair votes aye okay um staff has provided the members of the board with the draft minutes prior to this

[00:15:48] meeting is there a motion to approve the minutes as presented to the board so moved there a second

[00:15:56] Ms. Kilgore? Aye. Dr. Northern? Aye. Dr. Ackerman? Aye. Ms. McPherson? Aye. Mr. Rotherham? Aye. Ms. Holton? Aye. Chair votes aye. Okay. As has become customary for us, the board appreciates being able to feature the wonderful arts programs across the Commonwealth by having students perform at our meetings. I will now ask Dr. Northern if she will please introduce our guests this morning. Awesome. The Turner Ashby Chamber Choir.

[00:16:37] is who we're hearing from today. They are the premier choral ensemble at Turner Ashby High School, located in Bridgewater, Virginia, under the leadership and direction of Mr. Ian Dively. The choral group is part of the Blue Ribbon Awarded Music Program. The Turner Ashby Chamber Choir meets before school, which got my attention. These are some early birds here, allowing students to participate in additional fine arts programs and other academic courses. This This past year, members of the group were selected for the Summer Residential Governor's School for Visual and Performing Arts and Humanities, the Virginia Choral Directors

[00:17:16] Association District 5 Honor Choir, the All-Virginia Senior Honor Choir, the All-Virginia State Choir, and the Virginia Thespian Festival's All-State Musical Production of A Chorus Line.

[00:17:31] Mr. Dively was also selected as the Music Director for the All-State Music Production. The Turner Ashby Chamber Choir has been invited to perform as part of the 2026 National Concert Chorus at Carnegie Hall.

[00:17:47] That's a big deal.

[00:17:48] Accompanying the Turner Ashby Chamber Choir is Rockingham Supervisor of Fine Arts Becky Ford, Ashby High School Principal Chris Knoll, and School Board Member Sarah Horst.

[00:19:36] *Mario plays*

[00:21:19] We made our spaces inside, we made our sun, we made our spaces inside, we made our lives, we said, see, all of us, we've got to see, all of us, we've got to see.

[00:22:53] Be the change you want to see, be the change you want to see, be the change you want to see.

[00:23:37] Change, be the change you want to see Change, be the change you want to see

[00:24:03] Oh, I thought I'd say the note, I mean the song I've been to see. I saw some of the things that say trends. You know what I can do with the games. Be the change, be the change you want to see. Be the change.

[00:24:49] I WOULD NOW LIKE TO INTRODUCE MR. ROB GILLSTRAP TO TALK ABOUT OUR PRINCIPLES OF DISTINCTION.

[00:31:36] President Creasy, Superintendent Gellickson, members of the board. This has been a long time coming, and what a tough group to follow, of course. But this is something that we've been working on for two years, and they're very excited to take the next step forward.

[00:31:51] Before I go too far into it, I want to make sure that I acknowledge some of our partners that are here with us this morning. Dr. Krista Barton-Arnold, VAESP. She's been very instrumental in this process and appreciate her presence here today.

[00:32:11] Dr. Randy Barrett could not be here today, but in his stead, we have Dr. David Elena. He's the Director of Government Relations for VAESP and a past president. and also Amy Griffith, Dr. Amy Griffith, Deputy Executive of VASS, and she also is very instrumental in this process. And I want to say thank you to all three of you for being here today. This is another way for us to elevate educators. When we say elevate educators, a lot of times we're talking about teachers, but this is elevating educators as administrators. So I'm going to read a little bit of it to

[00:32:48] you and then I'm going to read off the candidates. This will be the first time. they don't know they're all well I don't know if they all are but a lot of them are probably listening and watching right now to see if they made it through the process and our candidates so that'll be exciting for them and we will make that more public after this event but this is the announcement in partnership with the Virginia Association of secondary school principals and the Virginia Association of elementary school principals video he announced a new program to recognize and celebrate the achievements of principles of distinctions highlighting their contributions to education and inspiring others within the educational community in code of Virginia the

[00:33:28] Virginia Board of Education outlines pathways for a principal to be recognized as a principle of distinction a building level administrator may seek the principle of distinction level 2 endorsement in

administration and supervision pre-k through 12 after successfully serving as a building level administrator for at least five years in a public school or an accredited non public school and successfully completing a formal induction program as a principal or assistant principal the statewide principles of distinction program is an opportunity for principals to garner recognition as a principal distinction while also gaining valuable experiences for professional growth video

[00:34:07] we announced this opportunity and open the application period in December of 2024 successful candidates will participate in a professional training symposium and complete a high quality professional development capstone project at their school this will be completed in November of 2025 final applications must have had a letter of endorsement from the division superintendent principals must have at least five years of experience as a building level principal and successful applicants displayed strong leadership in the areas of improved student achievement effective instructional leadership and developing a school environment that fosters the removal of

[00:34:46] non-academic barriers priority was placed on applicants that displayed a focus on student outcomes not individual outcomes data and evidence especially evidence that shows the impact on their school the following are the 31 candidates selected to complete the first class of the principles of distinction program I'll be reading their names I will omit doctors since almost every one of them are doctors and you will get tired of hearing me say doctor 31 times first we have Megan Arthur from Roanoke City we have

[00:35:22] Christopher Benson from Roanoke County, Kristen Bolum from York County, Mary Boynton from Rappahannock County, Liza Burdell Aldana from Arlington Public Schools, Micah Deloach from Virginia Beach, Sean DeRose from Fairfax, Victoria Gilbert from Culpepper, Marilee Grubb from Orange County, Heidi Haggerty Wagner from Alexandria City, Stephanie Haas from Virginia Beach,

[00:35:54] Cynthia Jackson from Washington. Katie Johnson from Loudoun County. Canberra Koshaba from Fairfax. Michelle Luttrell from Loudoun. Mark Makovitch from Virginia Beach. Daniel Miani from Virginia Beach. Drew Miller from Rockingham. Melinda Morgan from Montgomery County. Candace Merrick Bynum from Suffolk Public Schools. Bridget Outlaw from Chesapeake. Angela Ramsey from Danville.

[00:36:30] Ryan Schubert from Virginia Beach, Michael Sidenbotham from Stafford, Beverly Smith from Chesterfield, Kim Smith from Roanoke County, Paul Thiessen Jr. from Loudoun County, Amanda Volker from Chesterfield, John Wheeler from Hanover, Brandon Wolfe from Loudoun, and Shane Wolfe from Fairfax. The Superintendent of Public Instruction recommends that the board recognize these

[00:37:02] principles as candidates of the Principles of Distinction program. Thank you, Mr. Gilstrap. And now it is the pleasure of the board to accept public comment on all matters related to public education in Virginia. Before we begin our public comment today, I want to share a few comments about the manner in which public comment will be conducted. I ask that you model professionalism, dignity, and respect for others as you share your thoughts today. As adults, it's important for us to model respectful civil public discourse for our students and children who are either in attendance

[00:37:40] or potentially watching this live stream now or in the future when you begin please provide your name role or affiliation and where you live in virginia all remarks will be directed to the chair not to any other individual speakers will have three minutes to share their remarks you'll notice the green timer on the screens will begin with three minutes at green one minute the screen will turn yellow and the

screen will turn red when time is up at that point please close your remarks promptly speakers may provide copies of their public comments to mr joe crook joe has his hand

[00:38:15] raised the department's regulatory and board coordinator all written comments received during public comment will be collected and provided to the board as soon as possible after public comment is over you may also email a copy of your remarks to the board at b o e at d o e dot virginia spelled out dot gov and the first person on our list is scott braybrand followed by kathy halverson

[00:38:46] i'm not scott but i'm amy griffin speaking on behalf of scott so good morning president creasy superintendent gullickson and members of the board of education my name is amy griffin i'm I'm the Deputy Executive Director of the Virginia Association of School Superintendents.

[00:39:04] I live in Nottoway, Virginia. On behalf of VAS, I wanted to extend our sincere appreciation to Superintendent Gullickson and her team for their active engagement at the VAS Spring Conference last month. We greatly valued the comprehensive updates provided on key initiatives, including the 3E readiness indicator, the principal pipeline, and the proficiency standard-setting process.

[00:39:27] Most notably, we are especially thankful for the time dedicated to the superintendent listening session. The opportunity for open candid dialogue was incredibly valuable, and we received overwhelmingly positive feedback from our superintendents regarding this experience. We look forward to continued collaboration with the department on the 3E Readiness Indicator, encourage efforts that promote clarity, flexibility, and practical support for school divisions.

[00:39:51] We are also pleased with the strong response from Virginia educators who volunteered to participate in the proficiency standard setting process, and we are hopeful for continued transparency and consistency as this work moves forward. As always, VAS remains committed to supporting school divisions through these critical transitions and to partnering with the board and the department in advancing educational excellence across the Commonwealth.

[00:40:13] Additionally, I'd like to take a moment to recognize and congratulate Dr. Peter Gretz, the superintendent in Flauvanna County Public Schools. He was named the 2026 Virginia Superintendent of the Year. are proud to celebrate his exemplary leadership and content and contributions to public education finally we warmly welcome dr ackerman and look forward to the perspective and expertise you will bring to this work thank you for your leadership and ongoing engagement with school division leaders specifically superintendents across virginia thank you kathy halverson followed

[00:40:48] by justin hensley is justin hensley here and amy i had you on here but you spoke kennedy stringfield followed by Ann Tatis, Kennedy-Stringfield. Okay, Ann Tatis. My name is Ann Tatis, and while I

[00:41:24] have founded and run numerous non-profits, I'm here today strictly as a mother. We hear about suicides in Amelia, in Orange County, children dying of drug overdoses. We're looking at the wrong answers, and we're looking at the wrong solutions. There's so much evidence out there anybody in the medical community knows that in order for something to have the potential to do good it has the potential to do harm there is an iatrogenic

[00:41:58] effect going on an unintended consequence of a behavioral a medical treatment so when you give universal medical mental health care by untrained not counselors not psychologists teachers to all children, what are you going to get in return? A medical term that has long been known, an iatrogenic

effect. There's also something called the treatment prevalence paradox. The more we give, the worse it gets. Never in medical history have we given more of anything, and the worse it gets,

[00:42:35] we keep layering it. Bullying, not getting better. Let's do more bullying. Now they need mental health. Now they need restorative circles. Now they need trauma care for children who aren't traumatized. We're looking at the wrong thing and children are dying. As a mother, I had to show you what this looks like. My daughter in Chesterfield County, this was put into all eight middle schools in sixth grade, okay? First, they taught her the names in an opioid module. Codeine, fentanyl,

[00:43:12] hydrocodone, morphine, oxycodone. 11 years old, right? Completely oppressed. It's really going to stop a problem by the way dare was proven to make the problem worse about 30 years ago and then they the slides methods for use crushed up pills with dollar bills foil and how to smoke it once you know the name an 11 year old has been desensitized to orange bottles then they sent her home with an assignment use google search to find an image of a medication that can be found in your home

[00:43:48] once you have found it search the internet for a picture of it then post it and send it back to the schools all eight middle schools 11 year olds so what i will tell you is that you're you're fixing a drug problem if my child had died because the school gave her the road map then the assignment piqued her interest and she was dead and i never knew this happened who would be blamed me who would be at fault all of you every administrator because you're not thinking

[00:44:22] and you're killing children wendy little followed by alexander halverson wendy little alexander

[00:44:38] halverson ryan c tammy c dan zacharias followed by candace lucas thank you madam president and members of the board i am dan zacharias i'm the director of the old dominion association of church

[00:45:14] schools and those of you who are veterans have heard me address the board in the past and i bring you an update on a topic that i've talked to you about recently several times last year and that is a comparison of child safety data in different child care settings in virginia and so comments i made last year were admittedly based on data that was a bit outdated and we have combed through the most recent data and basically found the conclusions to be the same as what i've said in

[00:45:51] the past i'll focus there are two sets of data one regarding child abuse that occurs in child care settings and another that deals with serious excuse me serious physical injuries that occur in child care settings the first set of data is collected by the department of social services the second set of data is collected by the department of education and we looked at a three-year period recently from summer of 21 to the summer of 24 and compared licensed centers to

[00:46:27] religiously exempt child care centers in those three fiscal years according to social services data in licensed care settings there were 175 founded cases of child abuse that occurred in the same three-year period and religiously exempt settings there were only eight um additionally

[00:46:58] there was a troubling trend in licensed daycare centers the annual number doubled during those three years from 35 to 58 to 70. now if you scale for enrollment using the kindest interpretation that we can find there's still a four to one disadvantage license to religiously exempt in other words a child in a religiously exempt setting is more than four times and it's probably more like five or six times less likely to be a victim of child abuse in that child care

[00:47:36] setting and so i don't know if the department of ed is noticing this data and maybe they are behind the scenes but they need to take note of it carefully and our point basically is that increased state control of child care does not automatically translate to increased child safety that is our point and we take exception to being characterized as unsafe by default so thank you for taking the

[00:48:06] time to listen to my comments thank you candace lucas followed by kimberly ogden good morning My name is Dr. Candice Lucas, I am a licensed special educator administrator, I also have a doctorate from Liberty University in educational law specializing in special education.

[00:48:32] Welcome Emily, first time seeing you face to face and welcome to the new board member. I understand that you were at Rivermont, we have a child at Rivermont and Grace knows who that is, his name is Carter Gunn. He was trafficked to Rivermont from his grandmother's custody.

[00:48:50] He is suffering significant restraints and seclusions as a result of being placed in an improper location. I wanted to talk about, once again, special education. I've been coming here for over a decade to address that issue. And I want to talk about specifically as it pertains—oh, let me state this.

[00:49:09] I love the opening statement that you made, Grace, regarding the way we're supposed to to handle ourselves in public comment. I would ask that you practice what you preach because your facial expressions and mannerisms are negatively reflecting on the board. So thank you for that.

[00:49:25] And I also want to talk about special education student trafficking. I have over 8,000 invoices from the Sands Anderson Law Firm in which they are paid millions of dollars to traffic our children.

[00:49:40] Millions of dollars to traffic our children. and I'm gonna set each of the invoices right here on the stage. The first invoice has four shareholders, Jason Balam, Patrick Adriano, and Matt Green.

[00:49:55] They billed $51,000 to engage in the activities of practicing unauthorized special education to stop Alex Halbertson from going to private placement that was approved by his IEP. The second invoice I have has a bill of $12,781.51.

[00:50:19] It has two shareholders, Patrick Adriano, Matthew Green, and then it has two associates and two paralegals on this. And they're not performing the task of attorneys, they're performing the task that a licensed special educator should be performing, an administrator should be performing.

[00:50:38] The next invoice I have is really interesting because it actually has the president of Sands Anderson billed on it. And by the way, all of these monies are coming out of the budget code 3120, school improvement.

[00:50:53] Can someone tell me how attorneys fighting fate is improving schools? And this is signed off. Each one of them is signed off, you will see, with the code, with the budget code, and with Beth Teagan's signature, the superintendent. And then we have another one that's $5,606 to stop Brian C. from participating in a $1,500 online program to get his high school diploma, and he finished it in a year, and we paid for him to do it.

[00:51:22] Thank you. Okay. Thank you, Dr. Lu. Excuse me. Thank you. No, don't. Thank you.

[00:51:54] Kimberly Ogden. Kimberly Ogden. Thank you.

[00:52:18] Good morning, Board. Thank you for giving me the opportunity to speak to you. My name is Kimberly Ogden. I'm the director of the Virginia Community College Career Switcher Program, and we are

headquartered right here on the Reynolds campus, so I thought it would be an appropriate time to come over and speak to you. Educate VA is in its 21st year of preparing teachers for Virginia's classrooms, and in that time, we have turned out over 2,200 educators who have filled vacancies in Virginia's classrooms.

[00:52:46] Educate VA is designed to provide both pre-service and provisionally licensed teachers an accelerated pathway to meet all the state's requirements for a renewable license. For those of you who are unfamiliar, the program consists of two phases. The first phase is what I refer to as the coursework semester, and that is over 18 weeks our teachers complete the seven required courses for all educators in Virginia, and then that is followed on by level two when they're in the classroom and teaching.

[00:53:17] We continue professional development with them, and then we also get into their classrooms, them teach and give them feedback in real time our faculty includes veteran teachers instructional coaches behavioral specialists division instructional specialists building administrators and central office personnel as a result of their demonstration of effective instructional practices in-depth feedback they provide to program participants our candidates share that they feel prepared to enter the classroom and have a positive impact on student achievement as a Community College Workforce Program, Educate VA, is the only career switcher program whose

[00:53:54] participants are eligible for the Workforce Credentials Grant. This grant has been in place since 2016 and is written into the Virginia State budget. It automatically reduces the tuition for Virginia residents to $1,330 for the coursework semester and $400 for the second phase known as Level 2. Obviously, the math, $1,730 for a teacher to be fully licensed, and when compared to other options, is the most affordable in the state. Additionally, we had the program approved for G3 funding last year, so those who fall into certain income brackets can participate for free.

[00:54:32] Since 2021, we have prepared 307 candidates, meaning that they have completed Level 1 and all the necessary coursework for license. In that same time frame, we have supported 323 first-year teachers across the Commonwealth, and of those 323 teachers, only 13 did not return to the classroom, three of which got a reciprocal license in another state. Due to demand, we developed and had approved a licensure pathway for provisionally licensed technical professional teachers, which after a small pilot in Roanoke City, launched statewide this spring, and we are delivering that to teachers in nine different divisions. And finally, we are truly looking forward to offering a special

[00:55:10] education pathway, which Mr. Gilstrap and Dr. Jackson at the VDOE have helped us navigate those final steps, and we look forward to having that opportunity. Thank you. Thank you for your time. Thank you. Is there anyone else in the audience who is not listed on the sign-up sheet that would

[00:55:26] like to speak? You can step behind the microphone, please. Good morning. My name is Wendy Little. I am

[00:56:34] from Chesterfield County. My son, Aaron Little from Chesterfield County, has had no access to education or remedy for three entire school years. In your packets are a warning that was received January 17, 2023, that you would lose your funding if you did not comply with special education regulations. I hope nobody committed wire fraud sending in an application for 25 to 26 for this year because this is problematic. Aaron made a poem for all of you. For all of the people who

[00:57:10] have come for years and years and years with significant violations of special education law and rights for years to be ignored is unconscionable. I sent you and there's a copy of the eighth Gebser

letter that I have provided under school board commentary. I'm sorry, Virginia Board of Education. Are y'all even getting those? Because I really wonder, are y'all really getting the public comment at all? You know, when people are handing you, you know, when a state complaint about one year of no education, it's Chesterfield Appeals, they lose. What do they do? They sue

[00:57:48] Aaron, they sue me, they sue you. I want a state complaint about college and career readiness. Chesterfield Appealed, they lost. What did they do? They sued us twice, including VDOE. We're supposed to be on the same side of this fence. They've been keeping us in court forever. And VDOE even claims we don't have to do anything because we're in litigation. The fuck you don't, the hell you don't. And so please refrain from using that type of language. And well, it is my first amendment, right? And I'm a little upset that nobody has done anything about my son not

[00:58:27] having education for three years. It is my first amendment, right? And I have the attorney general's things on that. So basically what you have become, some of you probably do know and some of you may not, what you have essentially become over the last six years is a vessel for a significant

[00:58:46] amount of corruption who are primarily created and designed by out of Chesterfield. I hope that some of you received your color of law notifications. This is heinous. This is not, this is supposed to be the board of education, not the board of zero education. It's not every student succeeds. It's

[00:59:24] almost no students succeed. Wendy Little, thank you. Is there anyone else who would like to provide public comment that was not signed up? You can go behind the microphone, please. Morning, folks.

[00:59:47] How are you doing today? My name is Todd Skinger, and I'm here just to basically try to get somebody's attention about educating young children. I have a daughter who currently is in school forced by a judge to go to school against medical directive. I'm being sued. I'm being sued for standing up for my daughter's education rights. And I don't know how I'm going to deal with that. They're looking

[01:00:23] for like $200,000 from a family that has no money. My daughter's in the sixth grade after obtaining A's and B's last year. They retained her. She's doing the sixth grade again. All her friends went forward. Her sister went forward. Nobody seems to care. She has a mental disability. She has dyslexia. She has ADHD. ADHD, sorry. And I don't understand why nobody's doing anything about it.

[01:01:00] I've asked for help from the VDOE. I've filed due process complaints. The reason I'm being sued is for filing due process complaints that you folks review. And they say that they're frivolous at the hands of the school's lawyers. Yet your department never said that. So why am I being held accountable for something that's false, at least based upon your own arguments? I know you're

[01:01:36] not going to respond because you're not supposed to. I want to be very polite to you, but people aren't being polite to my daughter or to me. My daughter has been victimized. She's been penalized. It's quite a travesty. She actually was on the front page of the Richmond's Time Dispatch last year asking, why was her education being taken away? All of this right after her mother died as well, being locked in a locker at school, being called a midget by administrators that are

[01:02:10] supposed to be standing up for her. She missed this time from school two weeks ago, and she was supposed to be taking SOLs. I wrote a letter to her case manager, and a full week later, she still hadn't taken the SOL. I just don't understand. I think you should change this. I also think that every child

nationwide but specifically here before the grade they're over with the third grade needs to be tested for dyslexia it will change the face of how you spend money to try to rectify this thank

[01:02:48] you your time thank you sir is there anyone else who would like to speak during public comment today okay with that we'll close public comment and we will move to the consent agenda is there a motion to waive first review and approve the items on the consent agenda so moved okay miss

[01:03:21] kilgore dr northern dr ackerman miss mcphierce mr rotherham sultan chair votes aye um we are going to item c first review of seat time flexibility action kit and notice form just so that everyone's aware yesterday we did skip this presentation and put it to today's agenda ms mcdaniel was supposed to provide us with the report yesterday, and she will do that today in addition to the

[01:04:00] other items she has for us. You can't hear.

[01:04:19] Okay, let's see what the next item is, and then we can, is Mr. Chapman around and he can jump to his? Yeah, we're going to pause here for one second while we find.

[01:04:36] Good morning, Madam President Creasy, members of the board, and Superintendent Gullickson.

[01:06:09] My name is Sophia McDaniel, and I'm pleased to present an update on seat time flexibility. Today, this board will be reviewing the seat time flex action kit, notice form, and monitoring template for final review.

[01:06:24] As you know, the board has had three HB 1477 seat time flexibility presentations prior to this board meeting. The first overview presentation occurred during the July 24th, 2024 work session, and the second HB 1477 seat time flexibility presentation that reviewed terminology and the first version of the seat time flex notice form occurred on December 2nd, 2024. During the December 2nd through 3rd, 2024 meetings, the board provided next steps and feedback to VDOE.

[01:06:59] On February 26, 2025, the board reviewed national models and Virginia guidelines during the work session. On February 27, 2025, the Board reviewed the C-Time Flexibility Action Kit and Notice Form on first review. Since that February review, staff has made intentional revisions to the Action Kit, Notice Form, and monitoring templates to align it more closely to the original intent of the legislation, address feedback from the Board, address feedback from the field, and to address

[01:07:33] feedback from VDOE subject matter experts. In this feedback, VDOE staff heard that the action kit and notice form was far too prescriptive and did not allow the maximum flexibility granted by the legislation. Therefore, I want to begin with the legislation to set the stage. I pulled out the opening language to highlight. HB 1477 requires that the Board of Education to provide local school boards with maximum flexibility to waive existing instructional clock hour requirements by developing guidance and alternative instructional time models in accordance with the board's

[01:08:10] regulations and guidelines relating to instructional time waivers. I draw your attention to this point because I want to emphasize the need for maximum flexibility as this will guide the rest of our discussion and revisions pursuant to feedback from the field.

[01:08:26] Previously, this board was presented with four proposed flexibility models. Previously, this board was presented with four flexibility models.

[01:08:45] As a refresher, these four are Model 1: Alternative Hours. These introduce flexibility for when students are learning. This can include options outside of the traditional school day, for example, weekends, before or after conventional hours, and year-round learning schedules.

[01:09:02] Model 2 is Course Innovations. These create flexibility in the amount of time students have to demonstrate mastery. For example, accelerated coursework or additional hours where needed. Accelerated mastery can create time needed for other subject areas or for hands-on projects or work-based learning time.

[01:09:19] Model 3: Flexible Learning Settings. These provide options for where students learn and earn credits. For example, work-based learning, apprenticeships, externships, and remote learning. museums, parks, college campuses, all provide motivational context for learning.

[01:09:36] And lastly, Model 4, which is blended courses, these provide options for combinations of subjects where students can learn in courses that blend two or more related subjects to reinforce and deepen student understanding across multiple disciplines, as well as allowing standards to be learned and demonstrated through project-based learning.

[01:09:55] This can also facilitate earning early college credits. So we've kept these four models and fleshed out additional considerations for divisions to consider in the action kit, notice form, and monitoring templates. Additionally, pursuant to feedback from the field, VDOE staff are recommending a fifth model.

[01:10:15] Model five, emerging local practices. Model five recognizes innovative instructional approaches that fall outside of the other four categories or that blend components of more than one model as each of these four really focus on a single strategy. Further, the point is to allow local innovation, not define innovation for communities.

[01:10:36] Many innovations are rooted in local contexts and evolving educational priorities. These practices may be in the early stages of implementation or work as an add-on to an already existing choice model. Model five is created to act as a catch-all model to drive and allow innovation under a broader set of circumstances as the law's language requires.

[01:10:59] Additional revisions to the action kit and notice form include refined implementation steps to ensure parent and educator feedback prior to submission of the notice form. Guidance surrounding Model 5, designed to be a catch-all to drive innovation.

[01:11:15] Additionally, staff elaborated that seat time flex is not merely for remediation, but is also for driving student engagement and personalization. Staff also incorporated references to career awareness opportunities and how these tie into seat time flexibility.

[01:11:31] Staff also provided more clarity surrounding division planning for seat time. and staff added additional evaluation tools for divisions to consider, specifically in the form of monitoring templates so divisions can ensure transparency and accountability with their innovative models. Monitoring ensures that students are thriving and educators are engaged and feel supported. As discussed, VDOE staff made these revisions pursuant to feedback from the board, the field, including the state superintendent's principal's rapid response team, and feedback from various offices across the VDOE to ensure the action kit, notice form,

[01:12:09] and monitoring templates are aligned to agency best practices. Part of this iterative feedback collection process included asking the field very simply, hey, how can we best support your division as we roll out seat time flexibility implementation? VDOE staff took these suggestions for wraparound support and have compiled the following next steps. One, staff will continue expanding the resource library of innovations from across the Commonwealth and nation for for divisions to use and update the web page.

[01:12:40] Two, staff will launch seat time flex office hours to provide technical support to divisions. Three, staff will launch monthly lunch and learn sessions to provide divisions with technical support regarding specific topics relating to seat time flexibility and provide a calendar of events on the same upon board approval of the action kit, notice form, and monitoring templates.

[01:13:02] And four, lastly, staff will develop revisions pursuant to early adopter submissions. and iterative feedback from VDOE in the field. These efforts will keep all stakeholders engaged as the implementation process progresses.

[01:13:17] The department is wholly committed to creating a parallel track to support and uplift divisions while they plan, implement, and monitor this work to drive innovation and move the needle for all students. As a reminder, today this board will be reviewing the CTIMEFLEX Action Kit Notice Form and Monitoring Template for final review.

[01:13:36] VDOE staff recommends that this board approve action kit notice form and monitoring template on final review this opportunity expands the ability for local divisions to optimize the valuable resource of time to create the personalized and hands-on learning environments needed to meet the students individual learning needs and interests implementation of hb 1477 will enable local school boards to implement learner-centric models that allow for greater personalization in multiple ways to apply learning and demonstrate understanding

[01:14:07] thank you are there any questions for miss mcdaniel sultan not a question just a comment uh thank you sophia for this uh excellent work and also particularly for the extensive public engagement you all have done on this thank you okay since this is final review is there a motion to approve the seat time flexibility guidelines including the action kit and notice form second any discussion

[01:14:41] here? Ms. Kilgore? Dr. Northern? Dr. Ackerman? Aye. Ms. McPherson? Aye. Mr. Rotherham? Aye. Ms. Holton? And chair votes aye. Thank you. Thank you. Okay. Item, instead of moving to item D, Ms. Conway has some engagements this afternoon and has asked if we could move M

[01:15:13] and N up to right now. And so if she, here she is, appears from behind the curtain. Okay. So will move quickly to item in and these two items are first review just to bring everyone's attention to that excellent good morning president creasy superintendent glickson and members of the board i'm jenna conway our chief of early learning and specialized populations and very pleased to be here this morning i'm joined uh with by chris meyers who is our director of vqb5 and very

[01:15:49] pleased to present to you an update on where we are on our early childhood unified measurement and improvement system as well as what is in front of you for first review which is the proposed 25 26 guidelines you'll also be pleased that my voice is the best that it's been all week so um i've been saving it the saving the best for last um as you'll always see in our presentations our world and early childhood, birth to five, we are laser focused on making sure that every child in the Commonwealth has the opportunity to enter school ready. It looks slightly different in birth

[01:16:25] to five than it does in K-12 or higher education. We take pride in the fact that our families are able to choose across a public-private system that includes, like Mr. Zacharias spoke to earlier, faith-based programs, child care, family child care, Head Start, and school-based programs.

[01:16:43] We support thousands of programs and sites across the state. We measure everyone, as I'll talk about in a second, but also support them to improve. We measure everyone who takes public dollars and support them to improve. And really, this board speaks with one voice on health, safety, and learning, and supports that array of public-private programs to meet those expectations.

[01:17:04] What this means is that kids have the chance to come into school ready, which is a predictor of future success, whether that's academic success or if you ever speak to a kindergarten teacher, classroom success, right? They can often tell within the first couple days who are the children that have had the opportunity to benefit from quality early childhood and who may not have.

[01:17:24] And our kindergarten readiness data results show that. So let me orient folks. I know some people are very familiar with BQB-5. Some folks are less familiar. Since 2020, Virginia has had a law that unified oversight of the publicly funded early childhood care and education system under this body, the Board of Education, created an Early Childhood Advisory Committee that's broadly representative of this public-private sector and moved oversight of all of the programs that take public dollars to the Department of Education.

[01:17:55] As part of that, it also required a mandatory measurement system. This looks very different than what is presented yesterday in terms of the performance framework because it's never appropriate to standardize test little kids, right? Just imagine a little six-month-old crawling or 10 month old crawling across the stage and trying to test them on something.

[01:18:15] Development is much more fluid at that age, but we also know that it's the period of most rapid brain development. So what the law called for is a measurement system for every site that takes public dollars, and for many sites that's a choice in the private sector, that it is indicative of child outcomes and that supports school readiness.

[01:18:35] In response to that law, the department has worked very closely with the Virginia Early Childhood Foundation, Department of Social Services, the Ready Regions, and 3,000 providers across the state to figure out a fair way to measure readiness across all of these different settings that supports everyone to improve and, well, if you improve what's happening in those classrooms, you can reasonably predict that kids are going to come to school more ready.

[01:19:01] That's how we got to VQB5, fast forward six years, and VQB5 measures and supports two very important indicators across these infant, toddler, and pre-school classrooms. I call them classrooms even if they're in family child care or child care. We see all you have to sort of look out, imagine the system is that right now it's about 3,400 sites, which can range from a home to a church to a school to a community-based child care setting.

[01:19:29] Across those, and roughly about 12,000 classrooms, across those 3,000 sites in those 12,000 classrooms, We use a national tool, the Classroom Assessment Scoring System, to measure between two and three times a year the interactions happening in every classroom. This is not, we talked a little bit yesterday about walkthroughs, this is not a walkthrough.

[01:19:48] This is 60 to 80 minutes. It's either three 20-minute cycles or four 20-minute cycles in which there's a trained observer who's had to pass a test, who then sort of evaluates the interactions between all the educators and the children.

[01:20:04] very intensive generally takes between two to two and a half hours to do these we do every classroom every infant toddler and preschool classroom twice a year and then we send in a third party to audit those results for accuracy and that's sort of the vast majority of our system we also know that supporting our educators including our educators and family child care and child care to use curriculum if it's high quality instructional materials can also help promote children's learning and so we provide some points if a site chooses to use curriculum and I'll talk more about that in a moment but those are the two ingredients that we believe will help improve what kids are experiencing across 12,000

[01:20:42] classrooms 3,000 sites and by measuring that precisely each year providing that information to families and then supporting improvement across the system so as you may remember those of you were here back in the fall I talked a little bit about the launch of the VQB5 Quality Profile website. This site launched in October with 3,121 sites listed across the state. Since then we've had over 81,000 views, including members of this administration who have used it to find childcare for their children in the greater Richmond area. But you can

[01:21:20] learn more about VQB5, you can type in your zip code or your community or your program's name and it provides information about vqb5 about your site you know it also links to that health and safety information that we have for licensing so truly in one place it's health safety and quality for all of the programs that take public dollars so with that here's where we are we uh wrapping up uh this year um this is our our second year 24 25 100 of our publicly funded

[01:21:54] programs in virginia are participating last year the final number was 3 121 we're up to 3 400 this year so even though it is an accountability system even though there are things that are asked of our private providers we are seeing more growth than ever before in the number of parents who are pursuing these services and we're seeing more private programs than ever before willing to to participate in this system.

[01:22:21] This year, just under 16,000 educators are receiving financial support through Recognize by Five, and this is very important, I'll talk about in a minute why 90% of our classrooms have begun to also indicate which children are in which classrooms.

[01:22:36] They get parent consent before doing that, but that basically allows us as a system, as I'll talk about in a moment, to understand which kids are in which classrooms, how those experiences are shaping their growth and then how we can tie those experiences to their kindergarten readiness, their third grade reading and math and beyond.

[01:22:56] That's really important. Most of this sector, we base judgment on the name of the building or the type of building or the program type or the funding source. But what really matters, the classroom is truly the greatest point of variability. And by being able to understand which kids are in which classroom and what experiences they're getting, that's how we sort of truly change the game for early childhood.

[01:23:17] 99.8% of our 12,000 plus classrooms completed their fall observations and they're on track. The spring deadline is May 31st. So lots of observations happening as we speak across the Commonwealth. And 81% of sites overall reported using an approved quality curriculum.

[01:23:34] So huge increases, particularly in childcare and family childcare. All of the observations that will come in, probably over 31,000 this year, will continue to support improvement. If you talk to an educator, while mathematically, a sample system can give you a sense of what's happening at a site, it does me no good if they observe Ms. McPherson and give her feedback, but I don't know what's happening in my classroom.

[01:23:59] Or conversely, as we've heard before, licensing goes in all the classrooms, so you get health and safety feedback, but you don't actually get feedback on the quality of what you're doing as an educator. So we make sure that every educator, every classroom gets feedback twice a year. We've got more than 70 resources approved from birth to five, and we're using kind of across the board, whether it's working with higher ed, or folks who provide coaching, technical assistance, it's all focused on interactions and on curriculum.

[01:24:28] And as I spoke with you in the fall, we have 51 sites that need support. Those are the sites we're most concerned about, and we have created improvement plans, we've hired consultants who work with each of those, and on a monthly basis are out there working to raise the board.

[01:24:45] I hope to be able to come in front of this body one day and say that we have no sites in that criteria, right? So that no matter where you go, if you rely on a public dollar to support your early childhood care and education, you can choose quality in Virginia. And this gives you a sense of the map.

[01:25:00] We are now in every city and county, 300 more sites participating this year than last year. And you'll see the blue are childcare centers, orange is family day home, and red is public schools. our Head Start programs are either located in homes, in childcare centers, or in schools.

[01:25:17] So those are served. Okay, so what's in front of you today are proposed updates. As we've said to the field, and we've been engaging stakeholders for the greater part of the last three months on this, we start, as you always know, we start in the fall with a deep dive. We go deep into the data from the prior year.

[01:25:33] We do surveys in which we ask educators and leaders to let us know what's working and what's not. And then we kind of take that information and begin to say what needs to shift or to evolve. This is truly an evolution. So this has been multiple years in the working. One of the things that's important, if you're trying to change practice across thousands, 20 to 30,000 educators, changing the rules of the game frequently does not work.

[01:25:58] So this is truly an evolution, and we are keeping the majority of the guidelines that are in front of you today are the same guidelines that were there last year. But there are four key shifts. So the first of which is, I'm gonna tell you a little bit about Virginia Connects. which is our new integrated data system to connect early childhood to early elementary so that we can truly make sure that we're able to influence outcomes, not only influence practices, but ensure that those change in practices results in better child outcomes.

[01:26:28] We're gonna shift and slightly increase the requirement for use of curriculum to really encourage folks to choose to use the curriculum in every classroom. We're gonna launch an honor roll to figure out how to elevate some of the good work happening across our programs in addition to our rankings.

[01:26:45] And we wanna just make sure everybody were transparent about the fact that there's no more funding for Recognize B5. And we'll talk about kind of where we are and how we're shifting to a model that's focused on getting the right rates for programs so that they are in turn able to competitively compensate their educators.

[01:27:05] So VA Connects is basically taking, if you were to combine what you heard yesterday from Dr. Solari, what you've heard before from Drs. Williford and Whitaker, it's connecting on the back end all of our work in early childhood and early elementary. So it's taking and sort of modernizing the technology system, allowing us to make it sort of one-stop entry, if you happen to be using VALS and PKRP and Link B5, so if you're a pre-K teacher in the schools, for instance.

[01:27:34] And it's allowing us to sort of make sure that we're able to sort of track the kids through the system with all due precaution and protecting privacy so that we can better understand how these experiences influence further outcomes. So for many of our users, it will just look like a different front-in and a different log-in, but it is much more secure.

[01:27:56] It is much more mobile-friendly. So the example we give for folks in our family childcare homes, they don't put down the baby. They often do it on their phones. So they're like, here, you know, Sam Jones is in my class, this and that.

[01:28:12] So making it mobile friendly means that all those family child care providers, it's easier for them to enter the information. It also makes sure that we're in compliance with all federal and state law on privacy and outcomes-based measurement. And ultimately, as I described before, what this means is that we can connect all of this information.

[01:28:32] Some of you have seen the slide before that really shows how predictive even those PAL scores, so not even the more sophisticated VALs, but the PAL scores were of third grade reading. This is opening up a whole new sort of set of information because we're able to track kids in classrooms and how those experiences promote learning. And we're also able to do this by getting those kids in those classroom lists, as you'll see the thousands, so 315,000 kids in VALs, 130,000 children in BKRP, that's kindergarteners, three-year-olds, and four-year-olds, and then roughly 140,000 kids in LYNC-P5.

[01:29:11] We're able to do this and then match those kids once they get to kindergarten, and the vast majority of our publicly funded kids will end up in our public schools. We're then able to assign that state testing identifier and track them all the way through college and post-secondary.

[01:29:26] So really exciting work that has been in the works for over three years, and that launches this fall. And this is particularly just important, and I talked about this a little bit, just to understand when we talk about connecting the system, this is not just pre-K in the schools.

[01:29:44] We're like, oh, that's great, it's helpful to understand. This is literally faith-based programs, Head Start, public schools, and family childcare. Okay, that's change number one, VA Connects. Change number two is we currently give you 100 points, it's 100 out of 800 points, if you're using curriculum in only one classroom.

[01:30:04] The reason that we do that is because when we looked at the world four years ago when we first came to you, but 99% of Head Starts and school programs were using curriculum already. And that dropped down to 55% of publicly funded childcare and 45% of family childcare.

[01:30:21] And we knew that if we just threw out a sort of immediate requirement in every classroom, that that would probably have a financial cost and would not necessarily lead itself to a thoughtful implementation of curriculum, which as you heard yesterday, is really, really important.

[01:30:37] And so what we're proposing now is that we do increase that requirement. So in order to get the 100 points, that you need to be using curriculum in all of your classrooms, not just one of your classrooms. As you see, this will only affect about 5% of sites.

[01:30:53] So most places, as they've begun to implement curriculum, we've made sure we reviewed lots and lots of curriculum. You've heard me talk before about Stream in 3, which is our state-supported resource. always a choice but this is an open educational resource that's free and available and of high quality produced by our partners at UVA so there's a free option out there so you don't have to shell out thousands of dollars but we still have been working in and we've also trained all of our support partners to support that implementation but we still have about 5% of sites that are not using curriculum and you'll see that some of them because 76% of our

[01:31:31] sites are using curriculum in all classrooms, 19% are choosing not to use anything. So we're really talking about just that 5% that are using it in only one classroom. We're giving them two years, so this is not going to affect this fall, but is really the following fall with the idea being we're bringing it to you now so we can spend a lot of time socializing this. If you think back to my dear friend on her phone trying to manage three kids in her home, it takes us longer to get that information out there. It takes us longer to work with her to help her understand what curriculum options are available to her including free ones and so we're asking you to approve this now with a two-year window so that there's

[01:32:07] sufficient time to get to get in front of everybody and so that if people continue to want to not use curriculum and you can meet expectations and not use curriculum but if you do want to use curriculum and get those full points we want to make sure that you know all of the resources available to you at number three is we're going to add some enhancements to the website that will go out this fall including publishing honor rolls and so the state law calls on looking at incentives and supports for programs and so one of the things that we'll do is we'll look at folks that do really good work we think you know like as an example looking at particular subgroups we know there's tremendous demand for infant and toddler

[01:32:44] all of our results right now are average for the site so there's not necessarily a way to highlight a particular site that's really really good at infant and toddler interactions we also know right now that although you can calculate your growth, as you look at the difference in your three-digit score, that there's not a way to kind of honor, for example, those sites that do make the most improvements. So in addition to the three ratings, we will also are proposing that we launch these honor rolls and these different ways of recognizing improvement and excellence within the system. At this point in time, no financial incentives

[01:33:23] attached to that but we will provide certificates and elevate them on the website and then last but not least we just want to make sure that this board is aware of as we have a final state budget some shifts to recognize B5 and we've been engaging the field going back to sending letters last summer just in terms of what the FY 26 budget does and does not contain but as you might recollect out of a challenge of figuring out how do we keep teachers in classrooms particularly in child care classrooms we launched recognize B5 we we found that a small financial incentive had no effect on teachers in public schools, probably because they make a significantly higher wage.

[01:34:02] It had a tremendous effect on teachers in childcare, and so we expanded the program. And since 2019, more than $105 million has gone directly to educators fall and spring, or really winter and summer, to support retention in classrooms.

[01:34:20] We started with 2,000 educators in 2019, 2020, and we reached almost 16,000 this year. We saw the effect of this. I think some folks say, well, there's still turnover in childcare. We still hear about the workforce. You have to understand like the pandemic was catastrophic to the sector.

[01:34:38] And so really recognize B5 was this really important lifeline during that period of time, direct to teacher incentives and investment in teachers. From our surveys and our other analysis, folks said they stayed longer. Teachers said it made it easier to hire. and so there was an impact.

[01:34:54] Unfortunately, at some point it's not sustainable to continue to invest in direct-to-teacher incentives, and so the state's priority is shifting to how do we get the rates right? So you fund each child at a rate that accounts for competitive compensation in order to position your public-private sector to pay teachers who are doing well to support kids and support improvement.

[01:35:21] And as you may have known, and was even covered today on Virginia Public Media, we still have thousands of children on the wait list. And so these are very difficult trade-offs that we face in the early childhood world. But we have, as enough today, 8,000 birth to five children sitting on child care subsidy wait list across the state.

[01:35:39] And so, again, no action needed per se on this. This was a general assembly and government sort of decision, but we wanted to make sure that we are fully transparent our guidelines and didn't want to surprise any of you with this with that let me pause and see if there's any questions for me or for chris are there any questions on this miss holton thank you jenna for this presentation and for this really remarkable work over over years now you and your

[01:36:12] team implementing such a high quality quality rating system a couple of questions one is about access so your your dual mandate all along has been improving quality access and you mentioned just at the end of your presentation that we still have thousands on wait lists but i don't see where are we how have we progressed on the number of children served yes usually you have

[01:36:44] that chart i know i'm trying to be more succinct uh miss holton but you know i could talk for hours and hours about this topic. So yes, so this will be, that's a great, and this is not a plug, I did not call Ms. Sultan and ask for this question in advance, but this is the state's single largest ever state general investment in early childhood of, I believe it is $462 million. When I came to Virginia in 2018, it was $75 million. So a historic investment, I have goosebumps even saying it out

[01:37:19] loud in our kids, and thanks to the incredible work of my team in partnership with VCF and the Ready Regions and the Department of Social Services and our 120 local social services office, every single dollar that was dedicated towards slots in early childhood for FY25 is going into slots.

[01:37:39] I mean, it is just remarkable. And we are going to come in by the skin of our teeth on June 30th in terms of those dollars. but we maximize the school division's VPI, and then we took the other money and created another 1,000 childcare slots. And we made more VCF and our Ready Regions made the mixed delivery dollars go further and got us up to over 2,600 kids instead of 2,500 kids.

[01:38:00] And so right now, I believe we are slated to serve 48,000 children on childcare subsidy, up from 20,000 pre-pandemic. And from our pandemic low of about 12,000, We are slated to serve 2,600 children, 2,630 to be precise, on mixed delivery, and just under 25,000 on VPI, including four-year-olds, three-year-olds, and kids in community provider settings.

[01:38:26] So it is truly a historic year. It's a balancing act, and I work closely with the superintendent on this, because on the one hand, we are ecstatic about this investment and seeing all these dollars. We can tell you, as I showed you before, where every last dollar goes and what you get for it, and we can share that information with families.

[01:38:44] On the flip side, the waitlist is really hard, right? And we hear from our private providers who say like, I can't make payroll with a waitlist slot. And some of those families have been on the waitlist for almost a year now. And so we are gonna put in some policy shifts with this new budget.

[01:39:00] We're gonna make the dollars go further. There's some additional dollars in that pot. Our partners at VCF are looking at additional innovation. So we're trying to figure out how to spread those dollars as far as possible. but the work of the new Early Childhood Care and Education Commission this summer will be continuing to grapple with this.

[01:39:18] Only a hypothesis, but I think getting our key fundamentals right in terms of our rates and sort of supporting public-private parent choice, knowing that we have more kids than ever before under the age of six with all available parents in the workforce, how well our economy is doing, and then just VQB5, just knowing that there are these options and that all can be quality across the the variety of choices we think is just driving this historic parent demand I'm a Miss Halton more questions thank you that was 48,000 is the number we hit this year yes for subsidy alone that doesn't include the

[01:39:56] 25,000 yet and I'm sorry the 48,000 doesn't include what VPI or mixed delivery so really yes it's it's the total figure this year let me get that for you because it's also got special education and head start in that in terms of all the publicly funded kids but I believe it's close to 90,000 and how does that compared to where we were? I only know the investment is my talking point, but I will get the number for you. The question is, are we, are we moving up? Are we still? Yes, yes, yes. That 90,000, close to 90,000 is showing continued improvement. Yes. And the one exception to that

[01:40:30] is with Head Start, because Head Start has had some unique flexibility in over the last, since the pandemic, so not just recently, but over the last few years, around being able to adjust their rates so they might take a slightly lower enrollment, particularly if there's not the same parental demand, so that they can get a more right-sized amount per child. So the Head Start numbers statewide have gone down, but that reflects oftentimes what's called full enrollment and trying to make sure that they're actually getting the right amount per kid. We've actually heard, because we've moved to a place where we calculate the cost of licensing and the cost of

[01:41:07] quality, we benchmark and VPI. So we say here's what it should cost to serve and we fund you to meet those expectations. It doesn't work that way exactly in Head Start. So there's been some adjustment there. Then I'm distressed to hear you know about the recognized B5 not being funded because I just think that that was such an innovative program and it had such an impact.

[01:41:29] And I hear you that it's a historic investment. So I know the legislature and the administration we're I'm sure wrestling with where to put the dollars but I'm worried about what the impact of that will be

and so my question to you is have you evaluated do you and maybe this goes to what you just said about how you're setting rates but have the are the rates going up sufficiently to cover that salary increment I mean if one thing we found in research has found in when teacher bonuses

[01:42:06] in the K-12 world, you know, have been used as a device to address retention issues, but sometimes they've been short-term bonuses, and it's no surprise that the research shows if you have a bonus for three years, and then the bonus ends, the teachers leave. Yeah. Especially once you've gotten, it's especially difficult once you've gotten accustomed to, I mean, a thousand dollar bonus for an early childhood teacher, that's real money. And so that now goes away for these

[01:42:38] actual teachers in actual classrooms, 16,000 of them, unless their employers are able to pick it up. And that would only be possible if the rates have gone up sufficiently. So what's your analysis of are those teachers going to get that bonus money continued from their local decision makers on the whole, or are we going to go back to the days of having turnover issues?

[01:43:05] Yeah, so this is, and this again speaks to the multiple trade-offs that we're grappling with. So we have a long-standing resource policy partnership with UVA in which we look at these things. So they're the ones that first did that RCT back in 2019 and found the impact, and they've continued to do surveys and additional analysis. They also were the ones that found that because our rates were so low prior to the recent shift that on average across four to five thousand sites that programs that took public dollars were paying teachers two dollars less per hour right and had twice as much turnover and and twice as many vacancies and so we know that there's a connection there the General Assembly mandated us to put in place cost of

[01:43:45] quality one of only three states in the country that is using that best-in-class model and as of two years ago you know the rates were truly the cost of quality 100% of the cost of quality for family child care and very close to the top for child care as you've seen if you've opened the paper read the headlines like we've been able to get teacher k-12 teacher salaries up and so even though we were in a really good place two years ago there's a little bit more of a gap now and so we're going to continue to analyze that closely this is the exact thing and this multiple types of this analysis Ms. Holtman is what we'll take to the Commission that will be charged with looking at this financing so we are now thanks to the General Assembly required to do

[01:44:24] report where we calculate the cost of quality and put that out there we explain the gap we look at the waitlist it's just the system is getting pulled on all facets right now just because there's so much demand we also know that we continue to partner with employers with the ECF and the business round table because they also are seeing the benefits in terms of historic workforce participation so we will grapple with that issue over the course of the summer we think the higher rates have helped with compensation the question is you know once recognized go but by if goes away like do we need to kind of come

[01:45:02] back to the General Assembly in 26 and push again for an adjustment those rates to get closer to the cost of quality so that they can be compensated competitively my hope had been my hope had been that we would get enhanced minimum wage in before the bonuses went away and sadly we're not there yet but maybe that's part of the future. Thank you for your great work. You're welcome. Thank you, Miss Holden. Dr. Northern. Particularly excited about the linking up of the databases. That's super

[01:45:35] exciting. I guess my one question is just around curriculum. I know I was just doing some quick looking here. We have four free curriculum. We have 70 plus approved, I think I read, And Stream in 3, I know, is getting evaluated by UVA, which I'm super excited about.

[01:45:55] But can you talk to us a little bit about the variation in curriculum? I mean, do you feel like the bulk of providers are using Stream in 3, or are they equally sort of distributed between the four free ones, or is it just all over the map?

[01:46:12] So it is a, I think, the right science, it's a long tail. so there's basically I believe the top three are stream creative and frog right yes so there's there's three that are probably it's like an 80/20 rule three that apply 20 80% of the system and that would be streaming three creative curriculum and frog Street if this is public information anybody can go and you can get a full Excel download of all of the choices so just if anybody's watching out there and wants to know more we agree from the beginning and what we said to providers was whatever you're using now if you really like it we will review that so

[01:46:49] you do have like a very long tail of ones like so some of which were created by school divisions who had made investments and early childhood there's one or two faith-based so there's a couple there's that there is a very long tail of which ones that people really represent places where people wanted to stay with that curriculum we are contemplating and looking right now it's sort of, you know, we're part of the national conversation.

[01:47:12] I went and spoke at the, I was engaged at the National Academy of Science is doing a lot of work on early childhood curriculum right now and really grappling with, you know, should we tier it additionally and provide sort of more differentiated input across those 70?

[01:47:28] My guess is with that large number that not all are equally predictive of improving child outcomes. And so thinking about kind of that. The other one is that there was a rubric. You had to be comprehensive. you had to align with our early learning development standards as the kind of the core process and every one of those resources has gone through that there's also a more of an interest in what they call domain specific resources right now it is hard to imagine introducing a math and a literacy and a social studies and an arts in like five different domain specific curriculums like family childcare so we're now at that point to where we're evaluating sort of similar to

[01:48:07] you have with like the supplemental in with VLA might we also consider reviewing some supplements that are more geared towards literacy and math in particular so we're probably at a point dr. northern where we're sort of exploring some further tiering of that list but the first goal is just to get more people using something rather than using nothing for intent neglect okay quick question let's make sure just give me an idea of what reasoning is provided for non-use of curriculum, most often given?

[01:48:42] You know, I'll answer that, and then I'll ask all this, Chris. I would say that it ranges. You know, all of our need support sites are not using curriculum, right? Yes, they were not. So I think there ranges from folks, places where there's some real challenges with wherewithal in terms of managing just the day-to-day of keeping kids healthy and safe and the idea of intentional learning.

[01:49:05] You've heard me talk about we never see this sector as babysitting, but there are partners out there who are you know as they're struggling a little bit to think about the primary objective being learning right and sort of they're mostly you know triaging every day is triage miss mcpherson i think it ranges from there all the way to some of our higher quality sites who whether it's deeply held belief or um uh

other reason who want to make it up or have their educators make it up or some folks are saying I want to follow the child's lead and you know entirely so it really ranges like it's not just I don't want to make any assumption that if

[01:49:45] you refuse to use curriculum or don't you choose not to use curriculum I should say that you're low quality it really ranges I think and many of you as former educators would you know may agree with me there are there are extraordinary educators out there who literally can walk in every day and make magic happen right and whether that's experience or what it's like what they want to at night and kind of you know pull that together you know the sort of the you know this was a bootstrap sector right so people made up their own curriculum we're concerned that that's not systemic right so we want to make sure you can meet expectations and we will never you know sort of give you a bad rating if you can do incredible work with kids that's why interactions is 700 of the

[01:50:25] 800 points but we also know that systematically you know at the large scale with the compensation that that Ms. Hilton mentioned that like a lot of people need scaffolding and the idea from curriculum actually came from my work in Louisiana where people after two years of using measuring interactions are like I can help coach my folks on how to improve their warmth and responsiveness I can help them make the day more child-centered my folks need help we're talking about six hours of being really intentional about concept development, around engaging kids, around how to not be rote and ask open-ended questions

[01:51:03] versus like, what number is this? What shape is this? Like they just needed a scaffold or support. And so we actually sort of organically came to curriculum and realized that that would be so important for a large number of child care and family child care programs. What would you add, Chris? Not a whole lot. There's a few that are pending. Curriculums go through different upgrades and some folks want to stick with a curriculum that they're used to while it's being revised and going through the process.

[01:51:29] So they're using something. It's just not gone through our full approval yet. And then the last would be programs that are just new to this and they've decided to really focus on class first, but you can hear them say, I want to look into curriculum. I'm just really trying to first understand class tools.

[01:51:46] Yeah, it's important to remember that the entry-level requirement for an educator in child care and family child care is really just what's specified in the licensing regulations. So it is not a bachelor's degree. is not a particular credential so again for many folks it is a set of steps and we've when I first agreed to come to work in Virginia I said it would take us at least eight to ten years right focus on building the system first then get the sort of box in place support people to use curriculum and then you know hopefully in the two years we'll come in talking with you about more assessment level of kids so that the holy grail is really I come into a classroom I use the

[01:52:23] curriculum to support the individualized needs of the kids in the classroom while providing the highest of quality teacher-child interactions from morning to afternoon. Superintendent Gallickson. Thank you, Jenna, for your team's great work on this. Can you just unpack for the board why it's so monumental that this year there's not a single dollar that's left going into the end of the fiscal year for slots?

[01:52:49] Because that's a new change as a result of legislative action. So just a quick overview. Absolutely. So a couple of really important points. We historically have left, including upwards of $20 or $30 million a year that were state general funds that were dedicated towards early childhood, that even

after we went to all of our school divisions and they went to their community provider partners, like we just didn't, there wasn't the demand for those three and four-year-old slots often in school or community-based settings.

[01:53:23] And so we didn't have any flexibility to move those dollars over. so they just were quietly reverted back to state general funds at the end of the year and didn't actually benefit kids. Going back more than a decade, CCDF, the Federal Child Care and Development Block Grant, there were years we didn't use all the money and even I understood before my time where dollars got sent back to DC, but we also would roll it over for three years and the next cycle would come and so you had dollars either being reverted to state general funds up to the the tune of, it was either $20 or $30 million the two to three years before here, or money

[01:54:01] sitting in D.C. and not getting pulled down to Virginia, or even losing that money. And so, and a part of it was truly structural. I don't think that anybody intended this to happen, but it was very fragmented. We didn't focus in on slots. We didn't think about how do we sort of fund this system, right?

[01:54:17] Say here's our true north, health, safety and learning. Here's how we fund the system. Here's how we track the system. so we make sure that every dollar goes towards a slot and that we know what those slots are. So it's really been building those foundational pieces that have allowed us to get to this place.

[01:54:34] And then Senate Bill 54, House Bill 419 by Senator Locke and Delegate Bulova not only called for doing what Ms. Holton talked about, but kind of being more transparent about the kind of competitive compensation and the unmet need, but also said, if we get through fall enrollment and our estimates from the spring were incorrect and we have more demand here and less demand here, we can move those over.

[01:54:57] This is light years from when I came the first year and I went out to Danville and they said, I'm dying here, I got all these kids on a wait list for state pre-K. We have a Northern Virginia community that is leaving 3,000 slots that they're not gonna use. We couldn't even move VPI within communities, right?

[01:55:15] So we would leave the dollars on the table and those 20 kids in Danville would not get started. So we first allowed us to move within VPI, and then thanks to Bolivar and Locke and the General Assembly and the Governor, we're now able to even move it across the funding sources. So each year, we make our best guess, and that's what goes into the budget, and then we have this ability to adjust during the year so when we get to June, we can confidently look at you, look at house appropriations and Senate finance and see every dollar was spent on kids.

[01:55:43] - Okay. - It also keeps me up as we get closer to June 30th, like at the bi-weekly. We pay childcare providers on the bi-weekly, and so those don't go down. as a good summer comes on us. - So thank you so much for this presentation. We will accept it on first review and see you in June.

[01:55:59] And I think you have item in as well. - Absolutely, thank you. Excellent, all right. I'm now joined by Jeff Williams, who's our Assistant Superintendent for the Office of Child Care, Health and Safety.

[01:56:17] You know it as licensure, but we do, Jeff and I intentionally work together with the leadership team and the broader team of across our regional offices across the state to really rename the office because its function is around working with providers to keep all of our kids healthy and safe.

[01:56:34] Also do huge appreciation to our dev and to the attorney generals who support us very frequently in this work. You've seen this before, so I'll move quickly here, but you, some of you might be saying, I've seen this before and that is true.

[01:56:49] You have seen this before. We are in the first review of the final stages of the proposed action to repeal what are the kind of the procedural elements of licensure. So taking two documents, the general procedures and the background checks, repealing the background checks.

[01:57:06] We're not getting rid of them. We're combining into one regulation, taking out the stuff that's already covered in state laws. We began this process, as I'll describe in a second, back in 2021, right after we moved child care health and safety from the department of social services to DOE.

[01:57:23] We came, we brought this to you twice. It went back out into the field for public comment. That ended in November of last year. In this second round, we received 49 comments from 23 constituents in 14 areas. Your town hall document walks you through kind of the gist of all of those comments and kind of where folks were pleased and where there were concerns.

[01:57:48] We've responded to the public comment. We've gone back through and made sure we're allying with the regulation manual, correcting all the technical errors, and then making sure there were just places where we were not clear, so clarifying that. We then brought this revised regulation to the Early Childhood Advisory Committee on April 17 and received a full endorsement.

[01:58:11] In your boilerplate document, I should note that there was an oversight on behalf of our team. We accept public comment up until the morning of the Early Childhood Advisory Committee, and due to human oversight, we inadvertently omitted a public comment.

[01:58:29] At the ECAC, we announced that we did not have any public comment, even though we had received one that morning. That individual let us know immediately following the ECAC. We sent it out to the ECAC, and then we let that individual know that we would get her her comment directly to you, and we both were incredibly apologetic, it was 100% our fault, and we have put in place a better system, so it's not just one person who's checking, but we get an automatic alert now, and there will be at least two people checking.

[01:58:59] So I commit to you that as a body, we take very seriously public comment, and we want, and we know that our ECAC members want to hear from the public, so we will not let that happen again. But you have that in your boilerplate, so that because the ECAC was not able to review it prior to that their endorsements we wanted to get that directly to you so this basically this just kind of walks you through the steps this is not the big kahuna okay this is not the like child safety regulations remember our conversations that we had and we made some pivots on that this is just the

[01:59:37] sort of how do you get a license how do you renew a license what if there's a a concern, all of the kind of the legal sort of apparatus around licensure, and then it combines the background check requirements. Most of the background check requirements are already covered in federal or state law, so we stripped out content, but it's not like we're not, the federal law is very explicit and very detailed, as is the state law, so kids are going to be kept just as safe in terms of keeping criminals away from children, this is the sort of, you know, the sort of the nuts and bolts versus the this is not the tool that you use to go and inspect the child care centers. As you see, what we are putting in front

[02:00:15] of you today has been through fairly exhaustive review from Nora to reg development to governor approval to first round of public comment just on the Nora to taking the revised revisions to the ECAC, to your first review in 2022, and your second review in 2022, to our attorney general, back to the governor, back to public comment, and this is the final version that you're seeing.

[02:00:44] So pretty exhaustive. We decided we would spare you the going section through section because we're here until tomorrow, but just wanted to make sure that you understood that the thing in front of you today has been through extensive review with thousands of stakeholders across the state. Let me pause there and see what questions you have for Jeff and myself.

[02:01:00] all of that being said thank you we will accept this on first review and see you in June we'll see you next month thank you all very much okay we are moving to item D we're going to plan on taking a quick break after mr. Chapman does his three D E and F so just prepare you all for that thank you very much president Creasy members of the board and superintendent Gullickson this item on

[02:01:40] regulatory actions following periodic reviews of regulations is on final review the only comment I would like to make about this is just to emphasize a point that Miss Holton brought up at the last meeting that one of the actions here that we are proposing is cleaning up what we think is a conflict here in the regulations governing the division superintendents of schools and for the most part when we have brought these actions following periodic review they've very simple cleanup or reductions you know removing unnecessary language this is a slightly more so a

[02:02:16] more substantive policy decision although we do think it is is the correct one um because again the the the department um has not been implementing this section of the regulations we've been implementing the most recent qualifications set by the board in the licensure regulations for school personnel. And so that's 8VAC 20-23. This removal follows a board action to remove these regs back in like 2011 that we were unable to trace out the full implication but it was removed. The action

[02:02:52] was stopped in 2017-ish by staff and was withdrawn by staff. So we do think that previously the board has voted to remove this particular chapter. So again, we're not sure why that action wasn't continued through, but we did want to emphasize that one aspect in the comments.

[02:03:12] Questions, Ms. Holton. Thank you, Jim. And just to clarify, the regulation in question, there are two conflicting versions in the current regulations. One which says, essentially, to be a superintendent,

[02:03:29] You have to come up through the chain of education administration, and the other says someone could be approved for the school superintendent list based on alternative executive experience, for instance, running a city or a business, etc.

[02:03:53] so it allows a broader pool for superintendents and there's two conflicting versions this is not just a cleanup we are making a choice as between those two versions and the department is recommending that we go with the broader definition of who can be a school superintendent and i have no objection to that i just think we need to make understand that we're making that choice today mr rotherham yeah miss holton's characterization is exactly correct um and i think it's important that we do call that out. I was on the board when we actually made this change and put it in, and the intent was

[02:04:31] to make the path to the superintendency for people who met a set of standards, including some kind of advanced education. As Ms. Holton said, people who had, you know, various kinds of experience running large enterprises at the sea level, whether that's public sector or private sector. I think the

assumption was, and I think history has borne out, it was not going to be a widely used route, but there would be times when divisions would want to be able to avail themselves of this and there was appropriate flexibility in the whole process.

[02:05:00] Any other comments? Is there a motion to approve the regulatory changes described in the item and delegate to VDOE staff authority to make changes necessary to comply with the Administrative Process Act or Virginia Register Act? Is there a second? Any discussion? Ms.

[02:05:29] Kilgore? Dr. Northern? Dr. Ackerman? Ms. McPherson? Mr. Rotherham? Ms. Holton? Chair votes aye. thank you mr chapman and we will move to e thank you president creasy um this again is a a type of action we feel like the board has become very familiar with we we typically bring this on first and final review because all that we were doing is closing out periodic reviews of regulations um here we have a few recommendations to close these out but again process wise we will bring

[02:06:04] another regulatory action back to the board for a consideration and approval on the actual changes to these regulations. In terms of these periodic reviews, we have six chapters that we are hoping to close. The first, chapter 460, which is the regulations governing sick leave plans for teachers, we believe should be retained as is.

[02:06:25] We think it's serving a purpose, it's clear and it's understandable. Chapter 510, which is the regulations governing the superintendent of public instruction, we also feel enumerates the responsibilities and we have not received any comments, indicating that there should be changes.

[02:06:41] The most substantive of the changes that we think should be made are in chapter 580, which is the regulations for the school breakfast program. And the main thing that needs to happen with this chapter is there have been statutory changes since this program was introduced. When the program was introduced, it was voluntary, and so it was really governing school divisions that opted into the school breakfast program, but state law now requires that to be mandatory.

[02:07:05] And so there is some language about waivers and things like that that needs to be drawn out of the regulation. When this comes back to you, we'll be able to give more substantive information about what the particular changes are, but the changes that we will bring to the board are really just removing the language that is no longer in accordance with statute and does not make sense at that time and making a couple of other reductions in the language because we think that there's some overlap with federal policy and when we're referencing federal policy. We don't think we also need to duplicate that language in the state regulations.

[02:07:41] We have regulations governing school guidance counseling, school guidance and counseling programs in the public schools of Virginia. We also think there just needs to be a slight modification in this chapter to accord with a bill that changed the terminology. Since we don't refer to guidance counselors anymore, but to school counselors, we'd like to align the language.

[02:08:01] We recommend that the standards for state-funded remedial programs be retained as is, and we similarly have a slight movement that we would like to recommend to the board and the regulations governing scoliosis screening programs, mainly because it shares a common user group with the regulations governing the testing of sight and hearing of pupils, and so we think that we could effectively combine these into a single chapter.

[02:08:27] We'd likely bring that to the board with a changed name, but the underlying policy we expect to stay exactly the same as it's written out. - Are there questions on this? - Okay, is there a motion to waive first review and approve the closing of the periodic reviews on regulatory chapters identified in this item as presented to the board?

[02:08:48] - Second. - Any discussion? Ms. Kilgore? - Dr. Northern? - Dr. Ackerman? - Aye. - Ms. McPherson? - Mr. Rotherham? - Aye.

[02:09:03] - Ms. Holton? - Aye. - And chair votes aye. Okay, item F, Mr. Chapman. - Thank you very much, President Creasy. In addition to the work that the board does here as its meeting, the board also oversees a vast number of advisory committees that range in scope from the Early Childhood Advisory Committee, which you just heard Ms. Conway speak of with regard to the regulatory action and in this case, the Advisory Board on Teacher Education and License Search, or ABTEL, both of which are statutorily required committees and require people to populate those committees.

[02:09:38] So we have annually seats that expire on June 30th of every year. And so a common item that we bring before the board is to consider new nominees for appointment to the board's advisory committees. This action has followed the board's process, laid out in its bylaws.

[02:09:55] We've solicited nominations. Staff has reviewed and submitted to the superintendent, and the superintendent has made recommendations to the board in this item, which we are now asking for the board to approve these nominees to those two committees yeah the superintendent's recommendation is that this we wave first review and approve these nominees are there any questions on this okay is there a motion to wave first review and approve the recommended nominees to fill the vacancies and expiring positions on abtel and ecac

[02:10:29] second any discussion here miss kilgore dr northern dr ackerman miss mcpherson mr rotherham miss holton and chair votes aye okay we will take a quick break here let's do five minutes and then we'll come back and um do item g and remember that we do have the second part portion of yesterday's 3e presentation that we didn't take up that we will take up

[02:11:08] during this item thank you um item g please good morning mr jennings good morning board

[02:22:50] Board President, Creasy, Superintendent Gullickson, and board members, thank you for having us here again today. I am Mark Jennings, the Executive Director for the Office of Accountability. I am joined by my colleague, Dr. Anthony Williams, the Director of the Office of Career and Technical Education. And today we'll be discussing with you 3E Readiness Indicator and high-quality work-based learning. So today we're going to talk about our vision and guiding principles, the 3E Readiness Indicator. We'll give you an overview of high-quality work-based learning, and that's where Dr. Williams will come and speak. We'll talk about public comment and modeling of the

[02:23:28] proposed employment section of the 3E Readiness Indicator. And then today we're asking the board to take action on the 3E Readiness Indicator within our Virginia's Consolidated State Plan. So I do want to review briefly, I know we did this yesterday, but for our audience today, our guiding principles for accountability work. And we use these internally as well with our stakeholder groups. It's very beneficial to start and norm ourselves with these. And so our high expectations for all students number two transparency and access to actionable information number three that we emphasize student academic growth is in

[02:24:04] proficiency are both important but the system must prioritize getting every student to proficiency and mastery and that fulfills the every student succeeds act which requires that academic achievement be weighted more significantly than other indicators which we've done in our system where academic achievement is weighted more heavily number four building trust between schools parents and students through again transparent concrete easy to understand reporting we spoke about some of that yesterday we'll continue to have conversations on that and then number five the importance of stakeholder input

[02:24:38] and feedback throughout this process you have in front of you the bifurcated system on the right side we talk about accreditation the inputs and how schools in Virginia the expectations that all Virginia schools should be fully accredited and the resources they have both from state and local dollars or maybe federal dollars, using those to provide opportunities for students to meet those requirements.

[02:25:02] On the left side, you see the Virginia School Performance and Support Framework. You see the three models, elementary, middle, and high school. Again, those calculations give you an overall score out of 100, which leads to a performance category. We use that same information for federal identification, which then might lead to a school receiving additional support through the Office of School Quality and additional federal dollars.

[02:25:25] So I do want to emphasize the high school model here. As you see there, mastery is 50%, graduation is 15%, readiness, which will be our topic today, is 35%. You see three components and then the indicators within them. And so within readiness, we have chronic absenteeism, we have our six-year graduation rate with applied studies, and then we have our 3E readiness framework at 25%.

[02:25:50] And this was weighted such so that we are emphasizing we're preparing students for what comes after high school. They're doing this work for preparation for the next steps. And so our three E's stand for enrollment, employment, and enlistment. All of our models include at least two opportunities for indexing. So elementary and middle school have both mastery, indexing, and growth. High school has mastery and 3E. So there's some equality there across the board, some balancing where all students have an opportunity to go beyond a one-point value.

[02:26:25] And this, again, is an AND model, as you see there, enrollment and employment and enrollment. We wanted to emphasize that students have opportunities, exposure across the three E's as they decide to explore and think through their futures. So it's not an OR model.

[02:26:41] We're not trying to put students on a track here. So the board adopted last August what you see in front of you, the original three E's, the enrollment, employment, enlistment. And today, we're only talking about employment. I mean, you can ask questions on the other ones, but we're only asking for a revision to the employment.

[02:26:58] When the board adopted this last August, we had said at that time there would be stakeholder groups throughout the year to do work on high-quality work-based learning. The board adopted some of that material in February, which my colleague will talk about, and so today we're bringing it back to finalize that. So the original 3E employment had a one-point value for high-quality, well, no high-quality work-based learning, but for a recognized credential in a high-demand, high-wage field.

[02:27:26] It had a 0.75 value for a credential in a high-demand field and a half a point for the industry-recognized credential. I'm going to turn to my colleague now who's going to talk about high-quality work-

based learning. This was one of the attachments. This was the document the board approved in February, and he's going to walk through some of those components right now.

[02:27:45] Excuse me, can you guys just tell us where it is? Oh, yesterday. Okay, sorry. That's where I was getting confused.

[02:28:03] Were you able to locate it? This is a continuation from yesterday's presentation. The dates flip on our SharePoint. If you hit see all on the right-hand side, you can choose the dates, and then it'll allow you to get back to yesterday.

[02:28:24] All right, great. So what you see before you are the guidelines, which includes the evaluation criteria for high-quality work-based learning that was approved in February.

[02:28:55] What's important to note from this document, the February document, is that we're currently in the process of developing comprehensive guidelines for each unique high-quality work-based learning experience. If you can recall, annually we submit to the board our guidelines around high-quality work-based learning.

[02:29:14] These are the in-the-we details that support our school divisions, our work-based learning coordinators, and our CTE administrators. And so we're currently working on that document. And we hope to have that to you at the July board meeting for review and approval.

[02:29:39] Okay, primary changes to this February document. As you all can recall, previously, the Department of Education recognized 12 high-quality work-based learning experiences. Those experiences were pared down to four unique experiences that we'll discuss further along in this presentation.

[02:29:58] and we were able to redefine high-quality work-based learning. And by redefining high-quality work-based learning, you will see here that not only do we currently recognize the four unique experiences, but in addition to that, we have now redefined the graduation requirement with the inclusion of high-quality work-based learning for 3E readiness.

[02:30:24] And so I want to just take a second here for a point of clarification. The board approved in February four unique experiences. You're going to hear me address six experiences. For example, internship included supervised agricultural experiences.

[02:30:44] Those are two unique experiences, and so you'll see that when I discuss those, we're discussing them individually. Same thing with entrepreneurship and school-based enterprises. School-based enterprise was approved in February, but it included entrepreneurial experiences.

[02:31:02] They are unique experiences, so you'll hear me discuss those individually. In addition to that, in February, we also discussed that video we would need to develop a process for the evaluation of these high-quality work-based learning experiences.

[02:31:24] And so that work is also underway with that process also will be included in that work-based learning document that you all will receive in July. High-quality work-based learning is defined as a school-coordinated experience within the workforce that includes sustained or intensive engagement with industry professionals in high-demand fields in which students apply coursework learning to a real-world setting.

[02:31:50] And so what sticks out about that definition is high-demand fields and how we define what is a high-demand field. And so we have collaborated with the Virginia Office of Education Economics in their

high-demand occupation list.

[02:32:09] And so we've kind of backwards mapped from there. And so we took the occupation and we aligned our secondary coursework with that occupation. Our industry credentials, our high-quality work-based learning experiences are already aligned to the CTE coursework.

[02:32:27] And so it was a natural alignment once we were able to identify the high-demand occupations and align that and backwards map that to our CTE coursework. And so just wanted to provide background context for that. It is also important to note that the Virginia Office of Education Economics is currently reviewing and revising the list of high-demand occupations.

[02:32:48] And so we anticipate that the revised list will be published December of 2025. In addition, the goals of high-quality work-based learning are to lead students to national certificates of completion, industry-recognized credentials, and or post-secondary credit.

[02:33:11] Students will also receive direct feedback from their mentor or supervisor, which are industry professionals. This is very, very unique for this new definition of high-quality work-based learning. And so we're definitely bringing value back to our students that are participating in these experiences.

[02:33:33] Okay, from our 12, previously 12, now we're going to discuss the six, okay, six experiences moving forward. Those six experiences are aligned to CTE completer goals, post-secondary education, and our business and industry needs through the Virginia Office of Education and Economics.

[02:33:56] six experiences include registered apprenticeships internships select immersion supervised agricultural experiences entrepreneurship clinical experience and what we love to consider as a reimagined school-based enterprise this would definitely we're going to discuss this and in my later slides but school-based enterprise is has definitely what we're looking at is more going to be more student-centered student focus as far as a student's ability to actually engage in that enterprise components of high-quality

[02:34:34] work-based learning sustained and intensive and some of these we've already discussed earlier in the presentation but sustained an intensive engagement with industry professionals and or post-secondary subject matter experts and how to man fields application of coursework in a real world setting building of the five C's their acceleration of learning toward the earning of a national nationally certified certificate of completion or industry-recognized credential, and feedback and guidance through mentoring and supervision from

[02:35:08] industry professionals. So to take a deeper dive into the six approved high-quality work-based learning experiences, so registered apprenticeship. And so previously when we identified the 12 work-based learning experiences, you can recall registered apprenticeship and youth registered apprenticeship. And it's important to distinguish the difference between the two, which is why now we're just looking solely at registered apprenticeship. The difference, the primary difference between youth registered apprenticeship and registered apprenticeship was the related

[02:35:45] instruction and where that related instruction was being delivered. And so we see here in that first sentence, it references that it's integrated within the CTE curriculum. Not all registered apprentices are receiving related technical instruction in a CTE classroom, okay? If I'm a, I could be an 18-year-old high school student, and I have a sponsor who is my employer that is providing the related technical instruction outside of a classroom setting.

[02:36:20] That's a registered apprenticeship. I've registered with Virginia Works, but it's not necessarily connected to the CTE curriculum that I'm currently enrolled in. Youth registered apprenticeship, if I'm a high school student, I'm currently enrolled in the CTE electricity program.

[02:36:37] That electricity program is delivering the related technical instruction, not the employer. And then the students in both cases would receive the on-the-job training. So I wanted to make sure that we understood the differences.

[02:36:54] And while we're just recognizing registered apprenticeship, whether you're receiving instruction through our CTE courses or whether you're receiving instruction through an employer, we still recognize that as registered apprenticeship through Virginia Works. Internship is very similar. Removing the responsibilities from Virginia Works. Internships is probably one of our most popular work-based learning experiences. Within internships, of course, you have paid and unpaid experiences.

[02:37:28] And it's important to also recognize that previously we recognized two to three experiences that had minimum hour requirements of 280 hours, and you may remember that. And so one of the primary changes in the approved February document was that that 280-hour requirement was reduced to 90 hours.

[02:37:52] And so what you will find in the July document will reference 90 hours of high-quality work-based learning for each of the six experiences. Additionally, we're currently engaged and we plan to host a stakeholder meeting to discuss high-quality work-based learning for students with disabilities.

[02:38:17] and so we felt that we needed external engagement in order to be able to propose the appropriate options for students with disabilities so more to come on that if you all would just stay with me my presentation is slightly different than what I see on the screen here I'm not sure what you all have but remember we did discuss how we broke out each one of those experiences so I'm

[02:38:57] just going to walk through each one of those unique experiences the next one on my list is select supervised agricultural experiences and so supervised agricultural experiences there are two different levels we have our foundational SAEs are what we consider them supervised agricultural experiences foundational and immersion immersion experiences include the higher level experiences within agricultural education and of the immersion SAEs we've We've identified internship, placement internship, ownership, entrepreneurship, research, which

[02:39:36] includes experimental analysis or invention, and then school-based enterprise. From our initial research of SAEs, the model around entrepreneurship and school-based enterprise is definitely a model that we would like to consider duplicating for our high-quality work-based learning definition for entrepreneurship and school-based enterprise.

[02:40:01] we'll talk about that in in more detail entrepreneurship entrepreneurship is a student-led business venture and I think it's important to note that in our new definition of entrepreneurship our new definition of entrepreneurship that it's not just a student who starts a business it's one thing to own it's another to operate how do we measure that okay previously entrepreneurial experiences could include coursework students that were currently enrolled in our entrepreneurial

[02:40:38] program and so it does go beyond that we want a student to learn how to start a business but then at the same time be engaged in the operation of that business clinical experiences we continue to engage with the virginia department of health professions and the virginia department of health to

recognize the clinical experience in a number of CTE courses and programs to include our dental assistant program, practical nursing, nurse aid, Office of EMS for our emergency medical

[02:41:15] telecommunications programs and so as you can imagine these are regulatory requirements for those programs and we continue to engage through MOU specifically with the Virginia Department of Health Professions to ensure that students are engaged in meaningful and safe experiences.

[02:41:34] And then finally, school-based enterprise. And so once again, going back to the point of school-based enterprise as that student-led business enterprise. And so putting that student at the forefront. School-based enterprises provide goods or services that meet the needs of school's target market through a business and ensuring that that business is, that students are engaged with business and industry professionals for that supervision and mentorship component.

[02:42:04] And so that's a component that we want to ensure students are connected to for each one of our six experiences. Just give us a moment, please.

[02:42:22] I wanted to get through all of this, but while we have technical things going on, this would be a good time for any questions regarding high-quality work-based learning. Essentially, when Mark comes back to the stage, he's going to review the proposed criteria and the modifications around the employment section.

[02:42:43] So I wanna make sure that everyone has a good sense and understanding of high quality work-based learning. So any specific questions around the information presented, the overview from the February approval? - Are there questions? Dr. Ackerman? - Is high quality and high demand being used interchangeably?

[02:43:01] - They're not, no. - So those are two different things. Okay, thank you. - Different things, yes. - Ms. Holton, I see you're green. Do you have a question? - And this may be Mark or Mark and you together, but one continuing question I have. I think you all have put a lot of thought into it and a lot of community engagement and come up with an impressive work product.

[02:43:24] I'm just worried about it. It's complex, and there's reasons why it's complex, but I understand. Just noting how complex it is, am I right that we continue to have two definitions of workplace learning?

[02:43:40] One, for what is required to meet the graduation requirement, work-based learning, which all of our students have to either complete an AP course, etc., etc., or complete a work-based learning experience.

[02:44:00] So we have one definition for the graduation requirement and a different definition for the accountability system. My first question is, am I right that we still have dual definitions? And the second question is, is there any way we can avoid that extra level of complexity for the school divisions having to basically calculate and keep track of two different work-based learning definitions and apply them to students differentially?

[02:44:29] Excellent point that I want to clarify on. So in February, the board approved one definition of high-quality work-based learning. So this definition is for 3E, and it's also for the graduation requirements. So one single definition for high quality work-based learning.

[02:44:48] Within the board document, there was a checklist for the evaluation of high quality work-based learning. Add multiple columns. There was a column for graduation. There was a column for 3E. And I

think that that's where a lot of the confusion is coming from for the field.

[02:45:06] In our July presentation, We're consolidating the graduation in 3E requirements. And so once again, we have an approved definition for graduation in 3E, but the chart was slightly misleading.

[02:45:23] And so that will be a point of clarification in the July publication, as far as the specific criteria for graduation and 3E, which will be consolidated. - Excellent, that's a huge improvement. So if just to be sure I understand, if a student's work-based learning meets, is sufficient for them to graduate, then they are also meeting the definition of work-based learning for purposes of the accountability system.

[02:45:50] - That is correct. - Schools don't have to keep track of two different statuses for their students. - Correct. - Great, thank you. - And if I'm correct in saying this, I believe that was part of discussion that came out of public comment.

[02:46:05] And so being that we are flexible and work very closely with those comments. I think, am I right? - No, so. - Part of, 'cause I think I had some, I had several conversations.

[02:46:22] - Previous to the February. - With several schools. - So that's an improvement we've made. - Correct. - Thank you, thank you. - Lastly, one. - Dr. Northern, do you have a question that you'd like to ask? - Yeah, I just want additional clarity, 'cause I remember very well as having this discussion. And I remember like we came up with these two columns because it was my understanding that the definition 3E readiness and the way it was evaluated was more rigorous than it is for graduation requirements.

[02:46:47] So under prior leadership, I remember a conversation. So we're gradually going to all move towards the 3E readiness definition. Right now we're kind of in this transition place because we've got these graduation requirements definition in place.

[02:47:04] So I guess I'm just trying to figure out how did they merge? What did we lose or what did we gain relative to what we used to have them on on one the column looking at the high school graduation range column and then the three readiness column and i'm just wanting to clarify um how we were able to merge them together okay and what i can discuss is the proposal because that was going to be part of the july presentation but i would be happy to share just the research behind what we're doing and how we have arrived there if you have the table from the february meeting some of you you may or may not have that up.

[02:47:39] There's a column for 3E readiness and then graduation requirements. And so specifically, the primary difference is going to be around that feedback from that mentor, that supervisor. And so there has to be a formal process in order to receive that feedback.

[02:47:56] That was in the 3E readiness column. That wasn't in the graduation column. But we recognize the value of that. Stakeholders recognize the value of that. And so that was one of the primary differences between 3E and then graduation.

[02:48:12] The second factor, and this is all on memory here, is going to be around the Qualifying Career Readiness Assessment Score, which was identified for 3E, not for graduation.

[02:48:28] And so we are currently in the process of trying to determine, well, what is a Qualifying Career Readiness Assessment? Is that a credential? Is it not a credential? Is it an assessment that we would need to create or adopt?

[02:48:46] What does that mean? Is a student already satisfying that requirement through their CTE course and program and the stackable credentials that are already available? Those were the two primary differences between the two columns.

[02:49:03] And so what we are proposing, minus this has not gone out for stakeholder feedback through our workforce agencies, so this is continued work in progress, but where we are is that the inclusion of the feedback from the business and industry supervisors and mentorship, there is value there.

[02:49:24] the inclusion of that for graduation in 3E and the removal of that of the career readiness assessment score for the assessment that we have yet to define or identify so currently right now the other line items currently align for 3E and graduation so just to clarify we're at this stage since we haven't yet we aren't yet clear what that career assessment score is for for this purpose

[02:49:58] we're removing that requirement both columns so to speak that is currently what is going to be proposed but we have not there are multiple steps that will take place before you receive that draft in july and can i madam president can i ask a follow-up question on that so i'm confused you i'm sure you explained this and i just wasn't listening well but i thought we're being asked to approve this on final review today and we have done a lot of work on this and yet i'm hearing that we're going to be approving it in July. So help me understand what's on for today versus what's

[02:50:31] on for July. Sure. So what we're discussing right now is going to be the criteria for the inclusion of high quality work-based learning into 3E. And so we're going to discuss the inclusion of that and the point value of high quality work-based learning. In July, as you all may be familiar with the annual review of our high quality work-based learning guidance document, this is the more in-depth 100 plus page guidance document that we provide to you all that goes in-depth about each experiences and the requirements for each

[02:51:07] experiences what are the roles of the parent this the student the employer what are the appropriate forms that have to be signed and approved this that is the July document that will be presented that will include the checklist divisions for 3E graduation. A deeper level of detail, but we're being asked today to approve on final review the definition of work-based learning for both graduation requirements and for 3E, because they're the same. So that's our decision today. They are the same, yes,

[02:51:43] definition, yes. Yeah, that's good. Thank you. Thank you, Dr. Williams. Great questions. We do want to provide that clarity about what's being proposed for today and when it's being applied.

[02:52:05] If you're looking here, we're back up our slide deck here, none of the board has it. You see on the left side here the original employment with the one-point value, the 0.75 and the 0.5. And then you see the proposed criteria on the right side with the 1.25 value, a 0.75, and then we're going to ask the board to discuss and take action on this 0.5.

[02:52:29] And we're going to talk, too, about stakeholder feedback and some thoughts around these .5s and the options that were there. I also want to share this is in alignment with HB 2454, which has been adopted, has been chartered, and will take effect July 1st, but this also fulfills that.

[02:52:49] You might be wondering, and that's why the questions were so appropriate about the timeline and what we're doing. I'm jumping a little ahead of myself, but I'll say we are asking for this to have action because we won't apply this for 24/25. The other pieces we were talking about would be for 25/26. We had unanimous consent and requests from division superintendents that we make this effective for 24/25.

[02:53:12] So that is why we're bringing this at this point in the school year and doing that to bring it into 3E, which you'll see from the modeling data why they want it, versus us waiting until July and bringing all of this at one time. So that is why it is a little discrepancy or the confusion was very much appropriate to kind of sort those out.

[02:53:28] The other piece I want to make to some of the comments that Dr. Williams shared is the high demand jobs. We want to be clear. When you go into the Vowie website, you can sort those by region. But I want to be clear here because we get this question frequently. The expectation of Virginia for the 3E framework is that any high demand field is acceptable within 3E. We're not going to tell a student who's in Northern Virginia who's getting a credential in shipbuilding that that's not acceptable because that's not high demand in Region 4. So we're looking at it statewide, But we get that question because people do filter through the VOE database.

[02:54:03] The other question we get is around, and he shared the process and the timeline. If a student takes their credential and it's high demand, then it's high demand. If for some reason that credential is no longer high demand, we're awarding the credit for what it was at the time. So we're not going to go back and say, well, VOE then decides it's not high demand.

[02:54:20] You took it when it was high demand, and now we're pulling those points back from you. We're not doing that. So if it's high demand and it's listed, then the student's getting the credit for that. within the 3e so i do want to talk about the public comment which we were very excited about we listed this through the doe website it was in our virginia education update we sent emails to school divisions asked them to share it we had an online form we went to some conferences the virginia association of school superintendents and did some sessions there and heard directly from superintendents we met with the virginia association of secondary school principals we have a committee of practitioners which is made up of school board members parents

[02:54:59] principals teachers arranged superintendents and they gave us feedback on this and then i do want to recognize a group that i work with pretty closely that i've not had the chance to share with you but we call it the accountability advisory group and i'm sure they're watching right now these are some dedicated leaders across the state we meet twice a month and they provide feedback directly to me about the implementation of the framework. They see materials. They help develop reports. They let me know what webinars need to be done. They help me look at the webinars and have been really a very powerful group to help me analyze sort of where we are in the implementation. What do we need? What questions are surfacing across

[02:55:39] the field? And so like I said, I want to recognize their hard work. There's about 14 members. They represent all eight regions, both small regions and large divisions, small and large divisions and so really appreciate their dedication because they they pour through documents and give us great feedback we have division leaders superintendents academic chief officers directors of testing and so I want to recognize them because I know they're watching this and they helped develop this criteria from its infancy and so really appreciate their work so we had 126 respondents on our online forum that did represent all eight regions that it include parents we had community members business members we had k-12

[02:56:18] educators, higher education members, we had division leaders, and then we had some representatives from local state government. So we have pretty good sample size of the feedback we received. So some themes I want to share with you. Overall, very positive feedback that this criteria is an

improvement over the original version. They were encouraged that we're bringing high-quality work-based learning into this because it does provide students with more opportunities. Third, we heard some feedback, and this came up at the vast conference around JROTC. When the board adopted the original framework in last August. There was a note about we're going to have further

[02:56:53] conversation about JROTC. We will do that this summer. And so we're not doing it today. We can if you want, but we're going to bring it back to you this summer when we reflect and talk through all three E's again. And so that came up in some of the comments. Developing the criteria and employment section for students with special needs. So I want to share with you, we're very excited about this. As we think about employment, we think about all of our populations. We have stakeholder groups already set up for June and July, where we're pulling transition specialists, directors of special education, to talk through what does employment look like for a student with special needs, and especially students with cognitive disabilities. And so we've been working

[02:57:29] with that. When I presented at VAS, I shared some of the criteria. And what we had is division said, we don't want to name a program, because division said we may not have access to that program. And programs change, and funding changes for certain programs. We want to come up with a description that meets expectations. So divisions might already be meeting expectations or they can enhance their programs. And we want divisions to give us that feedback. And so, you know, when I shared this at VAS, hands went up in the room and they said, would my program qualify? Well, to make sure that we are clear about that and we're clear about the programs and how they work with an employment, we've got this stakeholder group that will meet over the summer and we'll bring this back to the

[02:58:07] board for effect for 25-26. We did not want to rush the process. And so you'll see us back here again this summer to share what the stakeholder group's doing, but we do want to develop a criteria within the employment section for students with special needs. So the work has started, but we want to continue that work and we'll bring that back this summer. The other theme that came up was cost and access. And so again, Anthony shared some work there about some resources available. That's something we want to definitely share with divisions, sort of how they can network and sort of what this can look like. So the option A and B, we wanted to allow them to look at these

[02:58:46] two options and we did have them vote. You see the data pretty overwhelming there. 81% selected option B and 19% selected option A. The differences here is option A is a CTE completer. So they've completed two courses in a sequence for graduation requirements and then they would complete a high quality work-based learning. So that's option A. Option B is a student who completed at least one state approved CTE course and completed a high quality work-based learning. And so you see those here you see some of the feedback specifically uh you know these were some of the comments about why

[02:59:22] they selected a over b so for option a you know students who complete only one course would not have the experience necessary to be successful in the work environment so these are people who said you need this is why you need the cte completion factor aligns with cte completion for credential pursuit of pathway really recognizing this alignment piece and then this third bullet supports learning valuable career skills that require subject matter content necessary for students to explore career pathways in the breadth and depth necessary to make plans and set career goals so these were some of the comments around why that cte completer was necessary with the

[02:59:57] high quality work-based learning and then you see for option b flexibility was a main theme that we provide flexibility for students to explore courses you know only requiring one cte course would help with challenges and scheduling and staffing of the courses and then the the theme of being more inclusive for all students and reduce barriers we did have a group recommend also an option c which would be could we do one cte course in industry recognized credential and my colleague can definitely speak to that i don't know if you want to do that now but that is something i want to bring to you because it came up through some of the public comment

[03:00:35] and some of our groups but i'm going to ask him to address that because it was something we heard and i do feel it deserves a response so anthony if you could speak to that idea of one cte course with an industry recognized credential i'd say that feedback it would be very very similar to the feedback of option a it takes multiple years in order for students to prepare for industry recognized credentials also it's important to note that we have redefined high quality work-based learning but we're also looking at redefining industry recognized credentials and so we have

[03:01:12] discussed this with you, I would say lastly it was last year, as far as our ability to redefine what is an industry-recognized credential. The Virginia Office of Education and Economics is currently also looking at identifying high-demand credentials as part of their work. And so what they're doing, they're looking at job vacancies, identifying the high-demand occupations, and then they're pulling out of the job announcements the credentials and certifications that are being requested by employers for the particular occupations.

[03:01:47] That's also something that we're going to be looking at later this year once that publication is released. Once again, it's just our thinking that a student will need multiple years of instruction in order to be able to prepare for such experiences.

[03:02:04] I want to share with you some data on the modeling. We did run the modeling of this proposed criteria. I want to share with you again the performance categories. You're familiar with these and again the point values that are associated. So you see that there, distinguished 90 points and above across the whole framework for distinguished on track 80 to 89 points, off track 65 to 79, needs intensive support below 65. And so what you see here is our fall simulation. This is all using 23, 24 year data. Without high quality work-based learning,

[03:02:43] you see the numbers on your screen and I know the board has these, you had 68 schools, 68 high schools, combined schools. I want to be clear, we're talking mainly about high schools, but this also would include your 6 through 12 schools or 7 through 12 school, any of the combined schools that have 9 through 12 included in that. So 68 of those schools distinguish, 154 on track, 96 off track, and 6 were needs intensive support. That's without high quality work-based learning.

[03:03:09] When we added this, both through option A and B, you see the difference and you see why the division superintendent said, please make this effective for 2425. We recognize it's the end of the school year, but you see the impact it would have on these schools. So with option A, which is the CTE completion, 110 distinguished high schools, 144 on track, 64 off track, and seven needs intensive support. I'm going to draw attention to that because you'll say, well, wow, we went from six needs intensive support to seven. What happened there? That is because when we brought in high quality work-based learning, our student group numbers increased. And so previously that school was too small and you have to have 15 students in a group to be included. So that school was

[03:03:48] not included. And so now with bringing high quality work-based learning, again, you're seeing more students and how they're doing. So that school became needs intensive support. So that's why there's a discrepancy there between the six and the seven. And then you see option B, the one CTE course, 120 distinguished high schools, 137 on track, 61 off track, and the same seven needs intensive support. So this is why, to the earlier comments, why we're bringing this to you today, because when this data is shown, like I said, unanimous support to say, please make this

[03:04:18] effective for 24-25. So the board's decision will be looking at discussing this employment section of the criteria and specifically asking you on option A or B, which one the board would adopt so that we can finalize it. We would revise our consolidated state plan to, right now it's got all of this in there, but then we would highlight the option A or B, remove the one that's not being used, and then be able to submit that to USED. I'll share with you, we've already talked with USED about this. Because this is considered a very minor revision, they're expecting just a

[03:04:56] couple weeks for approval. We talked with them about this throughout the process. This is what we're looking to do. These are some of the proposals, and they said two to three weeks. This is very minor. We don't see any holdup in running your accountability system with this. So we wanted to ask that in advance just so we can keep things moving smoothly.

[03:05:15] So at this time, I'll turn it to any questions or discussion around this topic. So, Mark, the edits and updates to the state plan are based on the 3E readiness decision. Yes, ma'am. So it goes together, in other words.

[03:05:32] Yes. And so we put number two as sort of to give that flexibility. We submit this to USCED and let's say they want us to make some changes. This would give us the authority from the board to make those changes without having to bring them back. And so that's the edits and sort of updates to the planet. Again, this is a very minor change, but we put that clause in there to say if they said, you know, a technical edit, you need to change some wording or clarify this, we'd be able to do that.

[03:05:55] Sometimes they ask us for more data. We've already put data in there around this modeling, but sometimes they may come back and say we need to see data in this way. And so that would be something we provide for them. Questions? Dr. Northern. CT leaders, three courses, Virginia.

[03:06:13] Two. Sequence of two. Basically, we're talking about the difference between taking one or two courses. And the sequence piece being important, because there has to be two that are aligned. And I'm looking at him just because he's the expert on this, but great question. In my opinion, is, first of all, two as a completer is already a low bar.

[03:06:31] Most other states use three. And I feel like we're trying to, you know, make these experiences high quality at every turn. So to me, if a completer is two versus one, we should be going for the more rigorous option, especially when we looked at the data and it really wasn't that big of a difference.

[03:06:56] But yeah, I didn't realize it was only two to be a CT completer. I mean, all the research shows that minimum three, right? But that's another, that ship has sailed. But anyway, that's my view. Madam President.

[03:07:12] So we are not deciding between A and B right now. We do need to put that in our state plan. I just want to be clear. We're choosing between A and B. Ms. Holton. Dr. Northern, I hear your point, and we're all for, I'm a big supporter of encouraging CTE completers.

[03:07:31] However, I actually think one of the crucial roles our high schools play is helping students explore different career options. And you're not a CTE completer, I think. Mark, you all can clarify for me, but if you complete one CTE credential in nursing and one CTE credential in welding, because you're trying to figure out what you want to do when you grow up, you are not a CTE completer.

[03:07:55] It has to be the sequence of courses. Anything you want to add? Could you clarify that point? Welding. Two CTE courses and complete them, but they're not aligned. Ms. Kilgore can help me word this better, because she knows this world.

[03:08:13] Yeah, well, I'll just repeat it. if you complete a CTE course in nursing and complete a CTE course in welding, that is not, you're not a CTE completer because you've completed two courses that are not aligned.

[03:08:29] Am I correct on that? - That is correct. A CTE completer are two sequential CTE courses and the requirements for graduation. That's a CTE completer. If a student is to enroll in welding one, for example, We want a student to fulfill the requirements of the welding program.

[03:08:49] Those requirements would not be met until after the completion of year two. Most students wouldn't qualify for the credential until two. And so that's where we want to ensure that we're providing options for students in advance, starting in fifth grade, career exploration opportunities, academic and career planning, to ensure that when students get to 10th, 11th, and 12th, they're enrolled in these valuable career pathways and they're able to meet the requirements of the

[03:09:22] program. One thing to consider is that if we begin to recognize a single course, then how would we incentivize students to fulfill the requirements of a program? Madam President? Ms. Holton.

[03:09:41] But am I right that to earn a, whether under option A or B, to earn a full point towards the rating, student must complete a CTE course so really the option A versus B that we're talking about here is simply to earn a half point under the rating system does a student who has completed a high quality work based learning experience also need to have completed one course or a sequence of two that's really the decision point is what it was what does it take to get a half point when you've

[03:10:21] already met all these other very rigorous definitions of work-based learning experience, what CTE course do you also, accomplishments do you also have to have met? That's really the decision point here. So remind us, though, your public comment from all of your stakeholders that you involved, what was their feedback, A or B? Option B, it was pretty overwhelming for option B, and the reasons were flexibility in scheduling the opportunities. By only requiring one course, kids could explore and maybe do welding and realize it's not a fit for me but now they don't have to do a welding to and complete you know the sequence of courses so want to provide that for

[03:11:00] you in that data I mean you hear you know the pros and cons there but the public was I think the 81% was asking for option B Mr. Rotherham I have one question but for two people one Anthony for you just as our subject matter expert I'd be interested in what your take is on on this option A, option B, and the trade-offs, and then also Ms. Kelton said she's very close to this.

[03:11:32] It was a three-year completer for a long, long time, back to Northam's comment. It used to be a three-year completer, but I do have strong feelings about it. I mean, I do, but I want to hear what he has to say because it's changed as far as, I think it depends on, you know, on one hand, is it bad for someone to try one area like welding and then decide, well, no, that's just not for me.

[03:12:00] I want to do something else. But I also realize that the importance of credentialing because everyone should have some kind of credential when they graduate. And to get a credential in CTE, it has to be, as we've just discussed, two courses. So I'm torn, even though I know the 81% on the pie chart was strongly for B.

[03:12:22] So I'd like to hear your insight on that. Dr. Williams.

[03:12:28] So it's important to go back to what was approved in February, this high quality work based learning. And so the intended outcomes of high quality work based learning, I was trying to find that earning a national certificate of completion, an industry recognized credential or post secondary credit. And so that doesn't necessarily align with one course in a student exploring a particular course. The definition doesn't align with this particular opportunity.

[03:13:05] We also look at economics and personal finance as a CTE course available to every student in the Commonwealth. If that's the CTE course, then what does that do to high-quality work-based learning?

[03:13:27] Now we're not encouraging specific CTE coursework that leads to high-demand occupations. That's the purpose around the one point, to aim at the one point, but these are unintended consequences that must be considered.

[03:13:45] in addition we talked about earlier we talked about the reduction of the hour requirement previously was 280 hours now it's a minimum of 90 hours that's a significant amount of time to be engaged in a high quality work based learning experience we do have concerns about how that will be completed in one year if there's only one cte course so just this is new for us at the same

[03:14:14] time but these are just things to consider Mr. Rotherham, Dr. Northern, even though I know the ones 81% is kind of lopsided I'm leaning more toward you know our original plan was high quality and our goal is for students to graduate with credentials of some sort whether they go on for

[03:14:48] higher education or what you know whatever and so based on what we talked about in February as you're saying that's a whole different perspective than this pie chart is saying as far as the 81 percent madam president um i'm going to go with dr northern and then you thank you i was just going to say that um the experience and the exploring the reason that we have back mapped all these opportunities in the middle school right we've already talked about this is the middle school

[03:15:25] grades are the grades at which you are should be exploring by the time you get to high school like You should have already gotten a pretty good dose, so all the different career pathways, what they involve, some exposure to them. Yeah, I mean, I just feel like that we have already built in some time for career exploration.

[03:15:49] I mean, of course, in theory, but then if someone could, you know, think of, I know this is what I want to do, and then until they take the course and really see what's entailed, they could change their minds. We're not saying they have to commit to it in eighth grade because some of these courses they can't take until they're in secondary school, correct?

[03:16:09] That is correct. But as she's saying, you know, we provide in middle school career exploration that should help narrow down by using the aptitude test and all those kind of things that will help narrow down for a student by the time they are ready to take these courses that they could be more selective and it wouldn't have to be a guessing game as to what they are probably wanting to go into, right?

[03:16:40] - I would agree. - Yeah. - And it's also important to note that we've identified these six high quality work-based learning experiences. We have not taken off the table the importance of service learning, job shadowing. - Exactly. - Mentorship. The other previous experiences are still going to be essential in career and technical education for career exploration.

[03:17:01] And so those experiences are still available. They're still on the table. we're only recognizing that it's a high quality. - Dr. Ackerman? - I'm curious if you've collected any data on the students with special needs being impacted by this and their points.

[03:17:16] Do you know how option A or option B would pertain to specific populations? - I can have that for you shortly. We can pull it, I don't have it in the slide deck here, but we did look at that and we definitely saw, and you saw the theme of the comments around inclusion, that only requiring one CT course would benefit students.

[03:17:34] English learners were also recognized because typically they're having to take maybe some remedial classes in high school, some more English language support classes, so only requiring the one course with an option B providing more opportunities for them. Again, when we come back in the summer, we talk about this employment.

[03:17:50] I think actually it was earlier on some of the slides that Dr. Williams did. There were some programs for students with special needs like Wilson Workforce that is a high quality work-based learning that would fit the criteria. - Of option, I'm sorry to interrupt, option A or option B? - It would fit under option A. - Okay, thank you.

[03:18:06] The other piece I do want to point out as you're having this conversation, as you see your hand, is earlier when I did the slide, I'm going to jump back to it. I do want to draw your attention just as you're discussing this because this came up in our feedback as well. When you look across all three E's, we want to send a message that all three are equally important.

[03:18:24] And so this was one of the reasons we are proposing a 1.25 value for employment. You see enrollment has a 1.25, and we got some feedback that you're sending a message that enrollment has 1.25, but no one else does. And so we're proposing today, you know, employment going to 1.25, but this is something the field also looked at as sort of the point values and is it equal across these.

[03:18:44] And now you're probably going to say, but enlistment doesn't, and I'll say, I'm coming back in the summer and we'll talk about that as well. But for today, for employment, I just want to draw your attention to that because that did come up in public comment too, as far as equating these and sending a clear message that all three of these are very important. Just a way of further consideration.

[03:19:05] I think it's wonderful that our middle schools are working so hard to expose young people to career options these days. I think that high school continue that role in a major way. And for those of you who have young people in your lives, many of our young people, I will say including myself when I was a young people, had no idea what we wanted to do until well into our college years.

[03:19:28] So I think it's wonderful that our high schools are doing so much more to expose kids to career options. I don't think that the only reasonable option is for students to be CTE completers.

[03:19:44] And that will bring me back to the scoring we're looking at here. I thank you, Mark, for pointing out that what we're talking about here is it's really like our mastery index on the SOL score

weighting. It's not either you get credit or you don't.

[03:20:01] To get the 1.25 point credit, you have to be a CTE completer. To get the 1 point, you have to be a CTE completer. To be a 0.75 point, you have to be a CTE completer. So the question is, are we going to give any credit at all to a school who helps a student complete a high-quality work-based learning experience and has completed a single CTE course but is not a CTE completer.

[03:20:35] It's not whether they're going to get full credit. It's are they going to get any credit at all for that work-based learning experience if they are not also a CTE completer. I think I'm right that there's no other way anybody gets credit for that, that the school's rating system gets any credit for that work-based learning experience unless they're under one of these options, right?

[03:20:57] I mean, there's not another page where the work-based learning counts. At this time, that is correct. And during the summer, that was in our public comment that could we use high-quality work-based learning in enrollment or enlistment? At this time, we're not bringing that before you. But over the summer, that would be a discussion item that we've received some feedback.

[03:21:14] So if we want every student's high-quality work-based learning rigorously defined through all the other provisions we've adopted to count at all towards the school's rating, that's what option A or B is providing, and that's really all we're talking about.

[03:21:39] Dr. Ackerman? I think you had some really good points when I think about my own children, but going back to some of the original intent on slide 7, that's when maybe, if you're leaving high school and you don't know what you want to do, maybe enrollment is the next step, right? So this is for the folks that enrollment may not be the next step.

[03:21:59] So we would want them to leave high school with some career readiness. um and I I feel like uh option a still including kids with special needs by having some of those you know I think the Woodrow Wilson was one of the examples but um gives me some assurances that they have options because you just if I have seen in the past the second schools see that certain populations aren't going to give them points they start getting neglected um and uh it hasn't happened in recent years but you don't want to open up an avenue for that so uh as long as there's

[03:22:37] an option i think for all the different populations to gain options i mean yeah i'm good miss mcpherson on the i'm looking back at the high quality work based learning um per the code and it says the high quality work based learning is also one of three options students have for meeting graduation requirements so one is completing an advanced placement honors international baccalaureate or

[03:23:11] dual enrollment course so you could actually complete one class and does it rank the same as all of these points that you have on the 3e readiness and two because it says second option is completing a high quality work based learning experience so are you saying that a student that took one ap class ranks the same as a student that did all of the work under the 1.25 or the 0.5

[03:23:43] because i'm hearing you say we ought to have two classes with somebody who is able to complete an ap class would really only complete one class so i that weight kind of concerns me a little bit or am i mixing apples i i think we're looking at slide seven is that is that what we're going to she's slide 11. yeah and anthony if you want to speak to that one i can address it um she's referring to the definition of high quality work based well before the definition there was this slide that talked about per the code high quality work-based learning is also

[03:24:23] one of the three options for students to meet graduation requirements I believe you're looking at the differences as far as how each is weighted right and how we're recognizing for an example 1.25 for an associate's degree 1.4 a dual enrollment course and how that aligns to the CTU requirements for employment right we have researched and we have discussed this and there are some discrepancies and that's what we're going to continue to look at the other areas in the near future for the purpose of this conversation we're looking at

[03:25:02] employment only but there there are some differences between the two they do not directly align I got it and that's what I just want us all to be clear about there's somebody who takes the AP class only has to take one but also I want to ask one more question. Ms. McPherson? It's simple, it's a simple one. On the credentials program, and it kind of goes back to your other slide, can they do the, can you obtain the credential online?

[03:25:41] So say I'm going to my regular classes, but I decide that I'm going to do an online class from home and get a credential in something. Is that permissible? So say, for instance, like here, j sergeant because somebody take an online course okay in you know welding or something and would that qualify if i received a credential for it we did not present well we're going to have to present a credential uh list to you all in july so that's coming too but it won't be until 2026

[03:26:20] spring of 2026 where we will at that time present the new criteria for industry recognized credentials which will include credit for students who have earned credentials and how they will substitute for cte courses okay and so that was a bill that came out of 2024 and so we're actively engaged with the identification of that as well uh important to note and understand that there's still going to be an instructional component it's not i can just sit for this examination but it is possible that a student may receive instruction outside of that classroom that earns

[03:26:59] right and also i know you want the feedback as part of it so you have to have some instruction okay i'm just trying i'm just thinking ahead i just don't want the students that are engaging in workforce learning to be disadvantaged just because they're not taking ap course you follow me because it's important in the 3e readiness that we recognize that the students that are not necessarily going to pursue the whole college bound track are still important sectors of

[03:27:37] our society in terms of what they do and like our scientist said yesterday a lot of them will make a whole lot more money than a lot of people's four-year program any other questions miss holton just discussion item i'll just make sure everybody saw there is a public comment that i think is thoughtful from the uh an administrator in chesterfield county in support of the option b

[03:28:09] that i think just explains the why the 81 of the stakeholder group uh expresses the views of the 81 stakeholder group so if you haven't had an opportunity to see that in our public comment it's on the uh excel spreadsheet thank you dr northern i have a just a comment thank you dr northern um mr rotherham uh i do think we want to be very careful here as we think about this just like high demand and high wage are two different things and it's very easy when somebody

[03:28:45] comes in there are very compelling examples to to be moved by that when you look at the aggregate data the returns still are higher ed we should be if we want people to make informed choices in college is not for everyone and there are amazing ways to have very purposeful lives outside but we should just make sure outside of that path but we should just make sure we are being very clear about sort of what the data show and that high demand jobs there's an element of job security there high wage jobs is a

different thing and there's obviously a then overlap there but it is not there is some difference and diff dissonance and some of the

[03:29:24] highest uh uh highest demand uh jobs are not necessarily in the highest wage sectors and so just as we think about this and we say well we want everything to be valued and so forth it should all be valued but we do want people part of this and i completely agree with miss holden i mean like anyone who's had kids or anyone when you're 18 you have to start making choices but the only people who are probably worse than 18 year olds are making decisions are 16 year olds you're still learning i mean 50 year olds aren't great at it either but you at least have a little more experience um and so we just want to be i think we just want to be very careful here making

[03:29:59] sure people are fully aware um as much as we can i get i get uncomfortable with some of the pathways just speaking as one board member that you want kids to be able to make different choices when they realize maybe you're 19 or 20 and you realize what you thought you wanted to do you've lived a little bit more and we i think we we want to be sensitive to the data we want to be sensitive to that so that's just a comment from one board member on i think we should we we need to tread lightly dr northern well as i'm inclined to do um i'll just state i did kind of look at the

[03:30:34] look at the latest research we've done quite a bit on cte um so when you look at the benefits to taking one versus two for the participants uh one leads to i mean the there's no doubt you've got it introductory exposure but limited depth and credentialing um but two courses is um highly and some of these are correlational don't get me wrong because we don't have a lot of like randomized trials but the correlational studies so that versus two you have a higher eligibility for industry industry certifications they have shown enhanced preparation for post-secondary

[03:31:13] education and direct entry into the workforce an increased likelihood of graduation and college enrollment and rates compared to students taking only one cte course so i think the research does support mores better and i appreciated mr williams very tactful response to us which what i heard as um if we go with one course we undercut the standards we've set for the other um you know pathways and and points and that there could be some perverse incentives to um you know to getting rid of the completer at that stage in the game so um at least that's that's the way when i was

[03:31:51] listening to i think you were very tactfully trying to explain to us that um we might want want to go with the higher option. So Dr. Ackerman, I do want to be sensitive to the public comments. However, was that all administrators, school administrators or parents business? It was that that 126 comments represents community members, parents, organizations, and I try to highlight for you, I do want to share with the public all comments were shared with the board 126. So associations, yeah, community of the range, we put this out soliciting feedback from those stakeholders and and so in our if if this group which seems like it's leaning towards a is there

[03:32:30] any kind of avenue for communicating that's what was in the original proposal and that's what we're going back to that we'd have to go back and change the original but i just want to be sensitive to communicating back to such you know overwhelming uh opinions um if we go against the overwhelming opinions uh i don't know if that's our area if that's something we want to give thought to i Yeah, I think we can certainly direct the department to do that communication, for sure.

[03:33:02] Mr. Rotherham. Did we hear the comments? That was very helpful, the way you had that linked in yesterday's agenda for the work session. But I'm trying to remember, and I don't, was there any pattern

to the comments? Did we get any, like, was business more inclined one way or the other business leaders we heard from?

[03:33:18] Most business members selected option A. Because, again, they wanted to see the full CT completion and go into the pathway. you're leading to a credential and sort of extending beyond that. Okay, so the people who are on the sort of seething end of this, if you will, for lack of a better term, they were saying they want to see option A, to Dr. Norther's point about they want to see the rigor.

[03:33:43] Madam President. Ms. Alton. You're ready for a motion. I'm happy to make one. I would just say by final comment that I'm all for encouraging full completers, And that's why I think it's great that both options award 0.75 points, one point, and 1.25 points only for full completers.

[03:34:04] And really, the remaining question is, do we give any credit for high-quality work-based learning experiences that are not yet accompanying CTE completers? And with that, I'm ready. If you're ready for a motion, I'd be happy to make one.

[03:34:22] If that's your will, go right ahead. So I move that we accept the proposed amendment to the consolidated plan in item G with option B. Is there a second?

[03:34:44] Okay, that motion fails for lack of a second. So that means that we would then have someone make a motion to use option A in that 3E readiness employment section for the school performance and support framework would go with option A and include those edits and updates in the consolidated plan.

[03:35:12] Any discussion? Just briefly, Madam President, even though I prefer option B over item A, I just want to explain that I will vote for the consolidated plan because I do think it's an improvement over where we are now.

[03:35:28] Thank you. Any other comments? Ms. Gilgore? I think it's important that we do respect the 81% who felt strongly for option B, But I also think it's important that we respect their opinion of the people who are going to be trying to hire our students in the future.

[03:35:51] And from what you said, they were going with option A. So if we're trying to prepare students for the future, you know, I think that's how we should go. Mr. Rotherham. Yeah, I'll just piggyback on that.

[03:36:08] And just, I mean, it is, we have this pie chart as 81 to 19. This is public comment, though. very clear. We should respect the view of every educator in the state, whatever they think on various questions, but this wasn't, I want to make sure we're very clear, this was not a survey across the state. This was people who decided to respond to public comment because they felt strongly or motivated to or professional obligation, but it is not a random sample of sort of where sentiment across the Commonwealth is that. Anything further? Ms. Kilgore?

[03:36:47] Dr. Northern. Dr. Ackerman. Aye. Ms. McPherson. Aye. Mr. Rotherham. Aye. Ms. Holton. Aye. And chair votes aye. Okay. Thank you, gentlemen, very much. And we're going to take item H and then take lunch.

[03:37:04] All right. Good afternoon, President Creasy, members of the board. Before you today is a first and final review of recommendations regarding the literary fund loan application approval for the release of loan funds.

[03:37:33] The Literary Fund provides low-interest loans for new school construction and for additions of permanent improvements or additions to existing schools to help provide students with safe and secure

learning environments. The Virginia Department of Education conducted one loan application process in the fall or in the fiscal year 2023 and two literary loan application processes during fiscal year 24 for school divisions to apply for construction loans through the literary fund.

[03:38:04] One school division, Bedford County, that applied for two loans during this loan application has now submitted all of their required documentation needed for their requested loans to be released by this board. The item requested of the board is to approve the release of two literary fund loans requested by Bedford County as follows.

[03:38:25] A loan requested for a gymnasium addition at Bedford Primary School. Bedford is requesting a literary fund loan for this project in the amount of $2.8 million, payable over 20 years, and is eligible for a 3% annual loan interest rate.

[03:38:42] The project application is shown in Attachment 1 of your board document. The second loan, requested also by Bedford County, is for an auditorium renovation and addition at Liberty High School. Bedford is requesting a literary fund loan for this project in the amount of $11,207,000, payable over 20 years, and is eligible for a 3% annual interest rate.

[03:39:06] This application is shown in full on attachment 2 of your document. The recommendation today is that the board waive first review and approve the release of these two literary fund loaned applications for Bedford County based on the loan amounts, terms, and eligible annual interest rates requested in their loan application and as outlined in your executive summary.

[03:39:28] Happy to entertain any questions that you may have. Are there any questions? Okay. Is there a motion to waive first review and approve the release of the two literary fund loans requested by Bedford County School Division based on the loan amounts, terms, and eligible annual interest rates requested in their loan applications as indicated in the item as presented to the board by Ms. Burda?

[03:39:56] So moved. Any discussion? Ms. Holton? Oh, I'm sorry. I thought you had a question. Okay. Ms. Kilgore. Dr. Northern.

[03:40:12] Dr. Ackerman.

[03:40:13] Aye. Ms. McPherson. Mr. Rotherham. Aye. Ms. Holton. And chair votes aye. Thank you very much. And we will take a 30-minute break for lunch. We will be back at 1. We are back, ladies and gentlemen, and we're going to go to item I and Mr. Gilstrap.

[04:14:41] Good afternoon, President Creasy, Superintendent Gullickson, and other members of the board. I bring to you a combination of partnerships that come together for this pretty simple action. During the April 7th, 2025 meeting for the ABTEL board, V2E staff gave a presentation on the need to create more accessible pathways to licensure for early childhood special education teachers.

[04:15:10] Over the past two years, Virginia has seen a 24% increase in the number of children identified with a disability for ages 2 through 5 attending preschool. The need for additional teachers with early childhood special education endorsement has been longstanding, with the percentage of vacancies or individuals teaching out of their endorsement area ranging from 7% to 9% over the last six years.

[04:15:34] This early childhood special education endorsement is a combination of two top 10 critical shortage data from 2024-25 indicates it identifies elementary and special ed as the top two critical shortage areas on the list and this is a combination of those we are asking abtel videoe and uh the superintendent is

a proposed removal of an arbitrary graduate level course requirement as opposed to undergraduate level for those wishing to add this endorsement to their license outside of an approved program pathway this would be item two if you were looking at the licensure

[04:16:14] pathways this change and other proposed future changes could fill at least 70 hard to fill positions in the future and furthermore this change would align the requirements with all other special education endorsements if you have your boilerplate on the background you can see that all of the other special ed requirements only require an undergraduate level of work whereas for what we believe is a mistake, this one endorsement asks for graduate level.

[04:16:46] All we're asking is to remove the word graduate and align it with all the rest of the special education endorsements and make a pathway that is easier to fill for early childhood special education. Are there any questions for Mr. Gilstrap?

[04:17:03] Is there a motion to waive first review and accept for final review the ABTEL recommendation to take regulatory action to open the compliance pathways in 8 VAC 20 23 540 by removing the requirement for coursework earned towards an elementary or an early childhood special education endorsement to be at the graduate level so moved second any discussion here Miss Holton president just to clarify everybody including the public we're not removing any coursework

[04:17:38] requirements we're just saying that the teacher candidate can meet the requirements by taking special ed early childhood coursework in undergraduate courses courses don't all have to be labeled graduate courses and uh abtel had a robust discussion on the on the issue and i think have wisely recommended that this comes and i'm guessing if you can just um answer this question for me. I'm guessing that's based on the fact that we didn't used to have early childhood

[04:18:14] special education coursework in undergraduate programs. They really only existed in graduate programs. And as you know, we didn't do a whole lot of teacher prep in our undergraduate programs until fairly recently. But I don't know whether we, in Abtel and Mr. Gilstrap may be able to address this, but whether we were able to parcel out whether that was why this language was there in the first place or whether it was simply a mistake it's actually a mistake it makes sense your suggestion was the same suggestion that I left Abtel in search of but we don't find evidence

[04:18:48] that that actually was the case we believe that it was just the misplaced word sounds good any other discussion here Ms. Kilgore Dr. Northern Dr. Ackerman aye Ms. McPherson Mr. Rotherham Ms. Holton chair votes aye thank you Mr. Gilstrap now on to Mr. Chapman thank you President Creasy, members of the board, Superintendent Golickson. The action

[04:19:25] before you in this item we think is just a fairly simple and straightforward cleanup item. The essential thing that happened as you all know the regulatory process can be long and sometimes when you have different moving parts it creates slight discrepancies and this is one of the discrepancies we'd like to correct. Back in 2022, this board approved changes to the licensure regulations governing school personnel following guidance at the federal level to remove the word regionally in front of a

[04:20:02] credit institution. So as one of the bases for a teacher license or a school, you know, any other kind of school personnel license, we're no longer looking for a regional accreditation, but simply this came from a credit institution um in general we think that this is was a helpful move for the teacher pipeline in virginia as well as in other states because it opened up the the number of bases that could

count for licensure qualification when that was approved in 2022 at the exact same board meeting we had a uh an item going through at the final stage to add a dual language endorsement and as you you know the between the proposed stage and the final stage we really don't want

[04:20:38] to see regular changes in the regulatory language otherwise that can delay by the time those both both went through and became effective we now have a a number of uh these dual language requirements that still say region still reference regionally accredited institutions and so what we'd like to do is strike the word regionally as we did before um to make sure that the the 2022 action and this regulatory action started in 2019 um can be aligned for with with the board's policy um so as a As a result, the recommendation from the superintendent is that the board waive first review and approve this just to make sure that the board's regulations are consistent across the board.

[04:21:15] Any questions on this item? Is there a motion to waive first review and approve the proposed regulatory changes as well as delegate to VDOE staff the authority to make changes necessary to effectuate this action or comply with the requirements of the Administrative Process Act and the Virginia Register Act?

[04:21:39] Any discussion here? Dr. Northern. I just had a quick question, Jim. Is there any reason why we put an institution instead of college or university? - Yes, because we have a definition of an accredited institution just to cover both of those.

[04:21:58] So we're working off of federal language, but the word institution and accredited institution is inclusive of both colleges and universities. - Questions or comments? - Okay. Ms. Kilgore.

[04:22:14] - Aye. - Dr. Northern. - Aye. - Dr. Ackerman. - Aye. - Ms. McPherson. - Mr. Rotherham. and chair votes aye. Thank you, Mr. Chapman. - Thank you.

[04:22:30] - We will take item K, two days in a row. - I know, good afternoon, President Creasy, members of the board and Superintendent Gullickson. My name is Amanda Nevetrel and I am pleased to present agenda item K, an update to the procedures for initiating an academic year governor's school.

[04:22:50] An academic year governor's school is a regional high school for gifted and advanced students under Code of Virginia section 22.1-26, joint and regional schools. Currently, there are 19 academic year governor school models operating throughout the Commonwealth of Virginia.

[04:23:08] These schools vary in focus area, size, and length of daily program and are sponsored by the Virginia Department of Education and participating localities. Programs are operated by joint boards as detailed in chapter 281, also known as regional governing boards.

[04:23:26] The regional governing board oversees the creation and adoption of the bylaws and policies that govern an academic year governor's school. In 1998, the Board of Education approved the process outlined in the procedures for initiating an academic year governor's school.

[04:23:43] Although several code and regulatory changes have been made to Code of Virginia, section 22.1-26 and chapter 281 since 1998, the original process approved by the board has not been updated. The 1998 document includes language about the department issuing a contract with the governing board and fiscal agent for the academic year governor's school. This is not in compliance with current regulations and has potential to create confusion in the field. Specific updates to the new document include removal of language associated with proposed programs entering into a

[04:24:22] contract with the department addition of expectations for technical support including an evaluation timeline for new programs realignment of the document into part one and part two for easier usability and updates to the requirements for administrative procedures to align with current best practices this document was sent to governor school directors as well as a prospective new governor school planning committee for review and feedback this document has also been reviewed by department staff and the office of the attorney general if approved the update to this document

[04:24:58] will be communicated in the virginia education update and department staff will provide technical assistance on this updated document to stakeholders as needed the amended process will also be sent to to the prospective new governor's school applicant and made publicly available on the department's website.

[04:25:15] The Superintendent of Public Instruction recommends that the Board of Education receive this item for first and final review. The department has received its first governor's school application since 2009, and the existing governor's school process is outdated and unworkable for the department and Board of Education to properly review.

[04:25:34] The school would like to be considered to open to students as soon as fall 2026, so amended approval processes to align with current code regulations is urgent. I'm happy to take any questions. - Are there any questions, Ms. Holton?

[04:25:49] - Yes, thank you, Amanda. My understanding is that the applicant for a new governor's school is ready to go once we approve the new application process, and my understanding, based on my conversation with Superintendent Gullickson last week, is that we can fully address this new application in timely fashion if we wait for final review in June on this. Is that accurate? Yes, that's how I understand it as well.

[04:26:25] So is there any reason why we need to do first and final review today? Well, this is a procedural document that hasn't been updated since 1998. So the revisions are very minor. We really took out language that didn't align with current regulatory language, but the item is largely the same. And as far as the New River Valley Governor's School, they will need to secure funding after approval. They're eager to do curriculum planning and work with their faculty to really prep for fall 2026. So is there any reason why this proposal could not have been

[04:26:59] brought before us for first review last month? Well, the process was in, you know, the works, but not finalized and wasn't reviewed by all parties at that time. And finally, am I right that in this proposal, you've not yet met with stakeholders such as the School Board Association, the Superintendents Association, the PTA, the VEA, or other parent groups, et cetera.

[04:27:32] It hasn't been vetted with those groups. No, it has not. But it is a procedural document that has minor updates. Well, but it does have changes as to the expectations for technical support, including evaluation timelines, etc. There's some substance in there, right?

[04:27:48] Sure. Well, the original document did not describe how new programs were evaluated, how often they would receive technical support from the department. And so really with those new programs felt it was appropriate to provide them a detailed explanation of the technical assistance they would receive. Madam President, if I may just jump ahead to a comment. Ms. Hulton?

[04:28:15] Though I think that what the work the department's done on this looks good. I just, you all know, you've heard from me before that I think we need to resist the urge to do everything on first and final. And I have withheld objecting to earlier items where they truly seemed totally technical.

[04:28:33] This is a substantial document, hasn't been updated since 1998. There may be other updates that the field might tell us need to be added into this work. And where something has only been made public essentially a week ago, less than a week, less than seven business days anyway, I understood from the superintendent that the department had no objection to doing this on only first review today.

[04:29:00] And maybe I misunderstood that. But I think that our normal process of first review one month, final review the next month allows parents to weigh in, allows teachers, allows administrators, allows school board members to weigh in if necessary.

[04:29:16] And they may have no comment whatsoever. And it may be that this document is exactly as we ought to finalize it. But I think it's wrong to be hasty when there's no need. Okay. I will let this be the will of the board.

[04:29:35] So the item says first and final, I will ask if there's a motion to waive first review and approve the governor's school process, approval process. Terrifying question. Dr. Northern.

[04:29:52] So the attachment that we've been given that's oddly says approved by the board on May 22nd, 2025, is this the new document that you've already made the changes to? Yes. Yes. Do we have a red line version that actually shows the changes that were made?

[04:30:09] no i don't have that available i could provide that if needed okay yeah that would that would have that would help me a lot just to see the changes because i got confused that you know seeing that it was a confusing um the way so um would you like to make a motion to only accept this item for first review yes okay thank you so uh madam president i don't think a vote is required for no no but um as long as we're all good with how this is going to progress we will take this for first review and then see it again for final review next month okay thank you thank you whoa

[04:30:46] whoa whoa hold on a second he has a question question mr rotherham i just want to know is this the full document that you want us because i only have looking at what we have in the presentation it's not very long it says it is procedures for initiating an academic year governor's school and it what we have is how many pages we got it is a shorter document yes the original document is fairly short as well and this is it yes so the changes that were made

[04:31:25] are just going to be redlined on what we see right in front of us now you'll bring us back yes okay mr rotherham thank you madam president amanda thank you for this um for next month could you just be we don't need to do it now just be prepared to speak to this goes a little bit it to Ms. Holton's comment. What are, once it starts, I know like some of the criteria that's in there includes things like you have to demonstrate that all the regional school divisions have had a chance to give input. If you could just be prepared to tell us like what are all the opportunities for public input once somebody wants, whether it's the proposed New River Valley

[04:32:02] one or whatever, anywhere else, what are the opportunities for public input in the process? What does that look like? I think that'd be helpful. Thank you. Sure. Thank you. Madam President, Ms. Hulton, if I can just speak to that. I appreciate that. But I don't want to suggest that you all need to go through a whole lot more homework.

[04:32:19] The sheer fact that we wait a month and that we accept public comment means that if there's some glaring concern or something omitted, then the field can come forward and tell us. It can come forward and tell you if they choose, but can come forward and tell us through public comment.

[04:32:38] there may well be none it may well be that this is exactly what we need to approve next month thank you all may i just ask if there are any specific stakeholder groups you would like to get feedback if i may my suggestion is that i mean well no here's what i would suggest the sheer fact that we wait a month means those who care about this issue and are concerned about it can come forward and identify themselves if you do want to uh choose to and maybe mr rotherham has thoughts on this want to do further outreach. There is a group, the Virginia Public Education Stakeholders Group,

[04:33:16] I can't remember what it's, the VPEC, includes the Superintendent's Association, the Principal Association, the VEA, the PTA, the School Board Association. I think those are the usual stakeholder groups. Yeah, I'm less concerned with that. Thank you, Ms. Holt. And then just just so people are clear what are they like when one of these is moving what are the opportunities including like this obviously this is a publicly noticed agenda item and in my experience the various groups have never been shy about coming and telling us what they think about items on our

[04:33:52] agenda um if they have time which the month of delay gives them but um just for this just for the public to realize once one of these schools gets moving what are the opportunities obviously all those affected divisions there'd be a school board process whatever else i think would be helpful thank you thank you okay item l everybody ready all right good morning or good afternoon sorry it's a blur today good afternoon president creasy board members and superintendent gullickson

[04:34:32] my name is calypso gillstrap i serve as the associate director of the office of educational technology and classroom innovation and today we are going to be reviewing the model policy on internet safety during our discussion we will explore the adoption process gathered insights from our stakeholders and identify key steps to ensure the policy remains strong and responsive to safeguard both our students and our educators. Since the adoption of the model policy in June of 2024, VDOE has proactively engaged stakeholders to gather valuable feedback and enhance the policy.

[04:35:04] Furthermore, the General Assembly has passed two significant bills strengthening internet safety education and oversight. Today, we will explore these important advancements and collaborate on the next steps to ensure safe and supportive digital learning environments for our students and our educators. The board has made thoughtful and strategic efforts to ensure the successful implementation of the policy. Since its adoption, the policy and instructional resources have been distributed to school boards across the Commonwealth, supporting school divisions and promoting internet safety for both students and educators. To further strengthen this initiative,

[04:35:39] the VDOE has actively sought stakeholder feedback on the model policy and instructional practices. We anticipate internet safety will stay at the forefront of our work as Senate Bill 905, which mandates the reestablishment of the Internet Safety Advisory Council, will continue to annually review, develop, and update the policy and instructional practices.

[04:36:01] House Bill 2460 encourages the Board of Education to thoughtfully integrate media literacy and digital citizenship standards and supporting instructional guides during our regularly scheduled revision of the Standards of Learning, which will begin with science this summer. In an effort to refine and

strengthen the policy, VDOE has engaged in a range of stakeholders, including educational organizations, digital safety and advocacy groups, school leadership associations, and school divisions.

[04:36:29] There have been requests from our school board members to incorporate artificial intelligence into the model policy to align with the new computer science standards of learning and the Executive Order 30, which has guidance on AI education. overall our stakeholders found the policy to be in pretty good shape here's a few examples that we received from VAS they said that they liked the policy they thought it was effective and they appreciate the flexibility that provided to school divisions so as we revised we want to make sure we maintain that flexibility VLAC our virtual learning advisory committee suggested a tiered

[04:37:06] approach to the training clarifying more things about student device use and aligning it with life instruction skills. Life skill instruction. There we go. And Vassel, the School Librarian Association, recommended that library-inclusive language identifying school librarians as key instructors on topics like copyright and media literacy. We recommend the following revisions to reflect the evolution of the landscape and the technological advances that have happened in the last year. One of the key updates is to restructure the guiding principles. This revision emphasizes the positive influence that the internet safety training will have on schools, highlighting its

[04:37:44] impact on students personal lives by fostering enhanced awareness responsible online behavior improved cyber security practices digital footprint management collaboration with parents and ethical considerations students will not only be better equipped to work in a digital world at school but also at home another crucial addition is guiding principle f which will now explicitly address the responsible and ethical use of generative artificial intelligence as ai continues to to shape the way we interact with technology, the updates throughout this policy underscore the importance of integrating ethical guidelines into our practice as teachers.

[04:38:23] To ensure alignment with the broader governmental directives, the policy is also updated to include relevant executive orders in the laws and regulations section. Additionally, new definitions have been introduced like AI defining its capabilities, ranging from problem solving to decision making, and stressing the growing need to have AI literacy among students to prepare them for the future workforce in Virginia.

[04:38:46] And the digital learning component reinforces the importance of digital fluency, critical thinking, and ethical technology use. By equipping students with the foundational skills of digital citizenship, this update ensures that they will be well prepared to thrive in these high demand jobs that we've been talking about today.

[04:39:04] More recommendations include our ongoing commitment to the safeguarding student data. So we have added a new sub point that will explicitly address access to student data, ensuring that data privacy agreements, DPAs is what we call them at the department, are utilized when procuring products in schools, including AI-driven products.

[04:39:24] This update reinforces the importance of protecting student data first, reflecting our dedication to the ethical use of technology. Additionally, our new policy expands the definition of educators to formally include our specialists such as school librarians and ITRTs, or our instructional technology resource teachers.

[04:39:42] By recognizing their vital role in their professionalism, we acknowledge that their contributions should be guiding students towards digital fluency, media literacy, and responsible internet use, and they should be serving as the internet safety leaders in schools.

[04:39:59] Providing, sorry, our recommended revisions also include building a strong foundation of responsible digital practices. The policy now mandates training, So this last year, we kind of were a little vague about training and our stakeholders asked for more specific things.

[04:40:15] So now we are asking for them to conduct training prior to or at the time of device distribution. This would also have additional refresher courses throughout the year. The Department of Education will create a example of what that training would look like through our public media stations.

[04:40:34] We would also like to see a big library with specifically talking about acceptable use, student conduct and data privacy. And then when school divisions are seeing specific problems, like let's say cyber bullying is becoming a problem, those resources will be available for schools to use when it is needed at the time.

[04:40:50] Additionally, the policy expands school-wide programs to include guest speakers. So before we ask for law enforcement to be invited, but we also think it'd be really great to see industry leaders that are in their communities talking about how does internet safety work at their work. So maybe somebody from NASA can come talk to their school and say, this is what internet safety looks like at NASA.

[04:41:12] To ensure that students also have the skills necessary to thrive in the technology-driven world, we wanna make sure that digital learning integration standards are actually ingraded into the instruction. Like we talked yesterday, it should no longer be like the icing on the cake.

[04:41:28] It needs to be the salt in the cake. It needs to be in the cake, not just afterthought. Additionally, the policy introduces the principle of responsible communication. That it's really important with the AI-driven world that we have honesty, integrity, and civility in all things we're doing on the computer at all times.

[04:41:49] Equally vital is making sure that our computer science standards of learning, which promote the understanding of data, network, and cybersecurity. By embedding AI literacy and computer science education into our everyday instructions, students will be able to have the skills necessary to navigate this increasingly technology-driven world responsibly and ethically.

[04:42:11] Equally important is the responsibility of school leaders to support and monitor the effective use of the digital learning and computer science standards. So how are school principals walking into classrooms and seeing that being taught? Where is it documented on lesson plans and in curriculum?

[04:42:27] By providing professional development opportunities, really clear guidance, and consistent oversight, we hope that leaders are feeling empowered to ask their teachers to seamlessly embed digital learning principles into their everyday content. Overall, these recommendations enhance the model policy concerning internet safety, reaffirming our unwavering commitment to equipping students with the knowledge and skills needed to navigate the world safely, ethically, and effectively.

[04:42:53] To ensure that we properly operationalize this policy, we will continue to provide personalized support to school divisions. will also include training of our governing board members expand professional development opportunities for our educators continue to curate and distribute instructional

resources establish or re-establish the internet safety advisory council we are going to work with our public media stations to launch a family digital citizenship and media literacy package we will integrate digital citizenship and media literacy into the standards of learning and instructional

[04:43:29] guides and we will read we will submit a report to the general assembly in october i'm sure you're all looking forward to reading that report in closing i don't know if that was last night okay in closing internet safety remains a critical priority and through collaboration with our stakeholders school divisions our school board law enforcement and policy makers we ensure that our students and educators will have the tools that they need to do what's best in our digital world thank you and i'm open for any comments or questions about the policy are there any

[04:44:00] questions mr. Rotherham or dr. northern you guys flip a coin okay um I just was curious whether there was anything on email phishing I feel like that's something that people are getting smarter and smarter about how to take your and I did a word search and didn't see it but it's probably maybe in there yeah I don't think we use the word specifically about phishing but we talked about unverified information in a little because we were also talking about like misinformation disinfor like we don't want to get too in the weeds because it is a policy and it's a model policy and we'll let school division fill in what they feel

[04:44:37] is appropriate also this has to be kindergarten through 12th grade so but we certainly can add specific language about fishing and be more specific we agree 100 and that will definitely be one of the topics that we have in those instructional resources like we would let the instructional resources kind of guide the don't click on that and what would be appropriate at kindergarten versus 12th grade because 12th graders are being fished hopefully kindergarteners don't have email. So we want to make sure we do age appropriate, but certainly we'll make sure we have phishing and emailing, communicating with unknown people be a really important

[04:45:14] part. Because originally this bill was passed to reduce human trafficking and building education skills so that kids know don't talk to strangers online. And so that's definitely an important part of this. Mr. Rotherham. Calypso, thank you. Great presentation. Thank you for all your work on this. I have a question about, so when we initially passed this, I asked the then Superintendent of Public Instruction, Superintendent Gullickson's predecessor, to run the Spice and Free Speech Groups, particularly FIRE. It's unclear that that happened. They were going to get back to us in six months. We never heard back.

[04:45:49] We have never heard back, but we have reached out several times to several advocacy groups for children, including the ACLU, as you specifically requested, but also a few others. If you can get them to call me, I'd be, I would love that. We can talk about that at the meeting. I also did specifically request the Foundation for Individual Rights and Expression, which is sort of emerged as sort of the real sort of down the middle free speech group, whether on all sides.

[04:46:16] And the reason I ask that is because I noticed in here we have some stuff on misinformation, which is obviously important and it's important for students in a digital environment. But as we've learned the past few years, sometimes things that are called misinformation are of simply just different viewpoints or places where empirical evidence conflicts and so forth.

[04:46:33] And so I'd be more comfortable if we both had that review and then if there's anything else we need to put in here because students, their first amendment rights don't end at the schoolhouse door and we need to be both very diligent about protecting them but also respectful of that.

[04:46:50] - Absolutely. - Thank you. - Absolutely. Happy to work with whoever you ask me not to work with. - Other questions or comments here? Ms. Hulton. - Thank you for this good work.

[04:47:03] I've got several particulars, and one is, I'm so happy it's here on First Review because that gives us an opportunity for input, and one in particular is, as I'm sure you know, the Take It Down Act, Bipartisan Act, that went through Congress expeditiously this spring and was just signed into law by the president last week, this week, may well deserve adding to your list of federal acts and consideration of whether there's any other additions that that may prompt. That'd be wonderful. We will add that to our list of federal

[04:47:40] laws. And then also we do have that resource already in our instructional resources on the VDOE website. As you know, it's designed to prevent the AI deepfake problem that's scourging our schools right now. So another fairly specific suggestion I wanted to make was on page nine, I believe, under Section D. There's language added the sentences local education agencies can prevent schools from accessing social media platforms and other non instructional applications.

[04:48:19] You propose to add the language artificial intelligence tools. I don't think you mean to be saying that local LEAs can prevent students from accessing any artificial intelligence tools. it's the non-approved ones or some, so I think the addition of the word non-approved would capture your meaning there. We absolutely hope our schools are going to be helping our students understand how to use appropriate artificial intelligence tools, so you don't mean to lump them in with

[04:48:49] all social media platforms that way. Absolutely, be happy to have the link. Third specific is in your list of orders you include executive orders both state and federal executive orders and there have been some useful executive orders at both the state and federal level but as you know executive orders as we all know executive orders are not legally binding on local divisions

[04:49:27] the the policy as written frankly suggests that they are and so i think that one way to deal with this would be to address in section a on page six it says policy must comply with federal state and local laws regulations and orders it adds in the regulations and orders and my suggestion would be that we consider an amendment that says laws right laws and regulations comma and that divisions are encouraged to comply with executive orders applicable executive orders and then goes on so

[04:50:05] So that would be one language suggestion. And related to that is, especially with that language being what it is now, the language on page seven under number one purpose. Current policy says this document has been developed for local school boards to enable such school boards to better support, blah, blah, blah. While this document offers recommendations, specific implementation is left to the discretion of local schools. You are proposing to delete that language, and particularly in connect, you know, as you're listing orders that are

[04:50:42] not binding, I would want, I would suggest that we restore some kind of language acknowledging local school division authority in these matters. I think that's all of my language suggestions.

[04:51:00] The only other specific I would have is, yeah, I assume, oh, on groups you may want to consult. an organization called Children and Screens that's done some good work in this area there it's a national organization it's not somebody you're by any means mandated to communicate with but you may want to consult them to see if they have any helpful suggestions this is their specialty and I have connections there

if you need an introduction and then finally in your presentation you listed an extensive list of stakeholders who consulted which is wonderful. I didn't see the Teachers Association mentioned. I assume that was just an oversight

[04:51:40] on the presentation. Were they part of your outreach? They were part of our first policy revision, the first time we went through, but we will be happy to reach back out to them after I make the revisions you guys have suggested today and get their feedback. Great. Thank you.

[04:51:56] That's all I got. Any other comments or questions? Superintendent Gullickson. Thank you so much, Calypso. I just wanted to flag for the board, we were getting requests uh including prior to my hat as superintendent to have an ai model policy and so um huge kudos to calypso and the team for recognizing it makes more sense to incorporate those ai elements in this model policy for internet safety and those nuances thank you member holton on that addition of the not approved ai tools so that we are definitely moving our youth towards those high demand skills

[04:52:36] But I have received good feedback from some individual board members on appreciation that they'll have this as a tool to navigate with their local school divisions. Okay, thank you. All right, be back. See you in June. Okay. As you can see, we have under presentations and written reports, written report O and P.

[04:53:01] And then we have Melissa Velasquez coming to give us the legislative report that we did not have yesterday. be back there you know i only aspire to be five feet tall so podiums are very intimidating to me so i hope everybody can see okay well i know that i'm standing between uh you and the end of two very

[04:53:41] long days so i'll try to be brief i'm the cleanup batter on the uh in the agenda so i'm here to present to you on the um legislative session i'm sure you've all heard many many things about it um but just a short synopsis of of some of the things that we did during the session and i apologize if i have to get used to this clicker i understand i'm supposed to hit it at the glass i also have bad aim there we go so um if you're not aware that i was um the short session because we have a short session during an odd number of years and so um that doesn't mean any

[04:54:20] less work it just means more work in less number of days so the short session was 46 days and um you can see just a short summary of what's in the um presentation there i accidentally deleted the source for this when i was revising the powerpoint but this is taken straight from the lis statistics for the session that they produce annually you can see there like i said not any less work it was just less time there were over 3 000 bills uh introduced during the session and this chart lays out for you how those bills were addressed both the house and the senate

[04:55:00] throughout the process during the session as i go through all 3 000 of those bills as they're being introduced to look for anything that impacts your policy k-12 early childhood we look for foia bills that may impact the work of the board or the work of the department administrative process act bills that would impact any of your regulatory actions mental health because it usually has a tie into the department health bills safety bills and of course any studies that while the department may not be doing those studies we may be asked to assist

[04:55:37] via jlark or other commissions in the general assembly so as you can see we tracked 158 house bills there were two resolutions including i think some board appointment confirmations 86 senate bills were tracked and some senate resolutions your staff uh at the department were very busy in about a 12-

day period which included two weekends and a holiday 267 legislative action summary documents were prepared during that time period people lose sleep they lose time not

[04:56:16] getting to eat they lose time with their families so it was you can see a very dedicated effort to make sure all the governor had legislative action summaries to make decisions on so needless to say we were super busy of the early childhood and k-12 bills that we tracked 57 house bills passed uh one resolution um in the senate bills 33 and one senate resolution and a house in the senate resolution were companions regarding a jlark study on library books so we will be hearing from

[04:56:54] jlark on vets and many of those house bills and senate bills were also companions so while it's you know um 77 i think bills passed there is not that you know truly in volume when you start looking at the companion bills now i was asked to bring out and some highlight areas of the legislation so um these bills are included in the back of your presentation in numerical order but just to highlight a few um there were health and safety related bills the cell phone bills that passed of course the administration was the leader in getting out ahead on cell phone policies and

[04:57:33] and then the assembly decided to codify that. Initially, the introduced bills were not identical to what the administration had issued in the executive order and then the department's policy guidelines, but the bills were amended over time and conformed to the executive order and the department's policies.

[04:57:51] So that's good bills for kids and for school divisions. The school-connected overdose bills, you know, you've seen in the news, there's been great progress in Virginia in dealing with opioids reduction of crises in that area but this bill is another way to protect students both public schools and private schools when the event occurs whether it's a public school or a private school parents have to be notified within 24 hours and then either the department of education or vcpe for private schools also have to be notified of an event and it defines what those

[04:58:26] events are the nutritional standards we've all heard about the federal government looking at the the dyes and foods. Always Virginia's a leader in getting out ahead of things. So this piece of legislation will ban, but I think it's nine different nutritional items, colors and dyes and food. School divisions do have time to prepare in terms of their contracts because this is a delayed effective date of July 1, 2027. So this is not going to hit school divisions immediately.

[04:58:59] They'll have time to work with their vendors and start working on those products that they sell the cafeterias and vending machines and then finally just another safety bill giving school divisions more authority and flexibility in meeting and working with their local partners in meeting on a school campus and to talk about safety issues with their local law enforcement um non-custodial parents hb 2226 just a further safety measure to protect the address of a foster care parent before being released student information to a custodial to a parent because

[04:59:39] we all know kids end up in foster care for various reasons and we want to protect the safety of the foster parents and children's locations the model memorandum of understanding for counseling that opens up telehealth to not just telehealth providers but the school counselors themselves another good service for kids and then the heat safety standards that the two bills hb 1663 incentive 11404 to protect those kids participating in their athletic and intramural activities so that health heat standards are augmented and more resources are provided so

[05:00:17] that students remain safe during those very important extracurricular activities teacher pathways we've heard i think about some of this yesterday but house play 1829 is creating a new endorsement for mathematics teachers and lessening some of the burdens of that endorsement so that we can open up more opportunities to have more trained licensed math teachers in the classrooms eliminating some of the classroom

[05:00:53] coursework requirements for certain categories of teachers as well as adding in the praxis algebra one as an alternative to taking some of those requirements in the classroom and achieving a certain score on that practice and then more pathways for career and teacher excuse me career and technical education pathways to allow those individuals that have the skill set already but need to complete some coursework it allows them to receive a provisional license if they have that CTE background gives them more time to do

[05:01:29] so and allows them to substitute some coursework in lieu of others such as classroom management curriculum and instruction in cte and human growth and development or educational technology in lieu of some of the other courses that were required as we move on to highlights for high expectations hb 1957 is probably the the the meatiest bill we'll call it for the session it is a substantial bill there are a number of provisions within it it is not

[05:02:02] effective until july 1 of 2026 so the department is thoughtfully working on that bill we will be communicating with school divisions we'll have multiple rollouts of information so that we don't overwhelm the school divisions with the requirements of the bill we will have lunch and learns we'll have webinars we will have uh we've done a i've actually helped draft a detailed synopsis of this bill working with the assessment office instruction we'll have a piece of it so that we can summarize the bill for the school division so they don't have to flip back and forth between the legislation

[05:02:37] and the synopsis and that will give them the first opportunity to get that big chunk of information all of our synopsis will be posted on our website including this one and hopefully i don't know if the superintendent's heard anything but hopefully we'll have the opportunity to talk to our or have the school divisions um talk to the legislators who patroned delegate helmet patron hb 1957 but but Senator Van Balkenburg had a companion that didn't pass out of finance, but equally involved in that bill.

[05:03:06] So, but this is going to be a year-long process. School divisions are going to be updated, and lots of different audiences in the school divisions are going to have the opportunities to hear from the department and receive communication and training that will help guide them through this. There are two subsections within the bill, subsections K and L, that do not become effective related to local audits and local permissive assessments, they do not become effective unless reenacted by the 2026 General Assembly.

[05:03:35] So we will be keeping an eye on that for 2026. I do believe yesterday you heard about the accelerated mathematics course in detail. School divisions will need to develop a policy to allow students who score in the highest quartile, the upper quartile in mathematics, to take upper-level mathematics courses with automatic enrollment parental options to opt out of that automatic enrollment, and to open up additional pathways to students who may not score in that upper quartile, but still have the opportunity to

[05:04:12] involve themselves in higher level mathematics. And the department will receive data from school divisions and publicly report on that data once received. One behind, I apologize for the delay, but

as the PowerPoint catches up, when we're talking about Virginia is always the most friendly

[05:04:51] nation to friendly state in the nation to our military families so there were three bills in particular we wanted to highlight related to military families one of very important ones for um jenna conway and the appointment of a veteran to the commission on early childhood that will be beneficial to both the military community and early childhood to have that perspective available there's also the opportunity that school divisions start to work on that child if they come from a military family into the school division with an iep that you know sometimes

[05:05:27] record transfers take a long time and so the school divisions can immediately start working on getting the child the services that they need based on what the parents present to the school division as they wait for that official record to be transferred and finally just for school divisions they have the authority to enroll a child with their family information and consent if they don't reside in the school division i don't know that that was ever prohibition but this is an affirmative statement that they can do that they do have to get certain information from

[05:06:03] the family member but we know that you know military families need as much support as they can get and this gives school divisions another tool in their toolbox to provide that and then finally on transportation um a bill passed that um gives to you know it's it's limited to a certain number of students in average daily membership in school divisions with 4,500 or below but allows them alternative transportation options. They're going to be able to enter into contracts. This bill does have an expiration date of July 1, 2027 but I would venture to guess that as we see it become

[05:06:41] more and more successful in the next couple of years that we'll see this revisited and that sunset clause eliminated potentially and the number of students that 4,500 limitation raised or even lifted so we'll be keeping an eye on that for the school divisions i just said that towards the end of your um packet there are all the house bills and all the senate bills that we tracked and passed um in numerical order so those that are their highlights um they're they're also in this order in case you want to look at additional legislation they're hot linked so you can click on any bill and look at the chaptered bill um it should have an acts of assembly number as the final piece of

[05:07:18] legislation um the synopsis as i said will be posted on our website they're being gradually rolled out in the newsletter and will be posted once they appear in the newsletter and of course I'm always available if school divisions have questions about the legislation and there are plenty of capable staff members who are subject matter experts on this legislation that I consult when I answer this question so I always have to extend a thank you to them for tolerating my emails and phone calls. So absent that I'm not going to go through each of those bills that's there for your reference and I'll be glad to answer any questions that I do

[05:07:54] understand it's been a long day for both of you. Any questions or comments? Dr. Yes, the one on page nine on high expectations, I'm just hearing a lot on the field from the folks of students with disabilities and their grades being impacted by the SOL assessments. And I know this doesn't going to impact, this doesn't impact anybody for another year, but I don't know if there's any language that can calm fears that are happening out there around that. There's been thought put into that um well the department is in its initial phase of working on the rollout and there's

[05:08:29] there's going to be there are internal work groups being formed project management taking place each one of the elements of the bill has different impacts for different um children from third

through seventh through 12th grade um the impact of the the two-week window at the end of the school year for testing has instruction impact and pacing impact for teachers so we're just in the initial phases of that um and so all i can say is stay tuned but um you know our special populations office is very thoughtful in the materials that they roll out for parents and students with disabilities um so that and for the our teacher licensure office for the supports and trainings

[05:09:06] that we're going to give for professional development this as i said this is this is going to be a year-long process and it will have you know a significant amount of information that has to come from the department to school divisions and then we also have to wait to see what those subsections how they are reintroduced in the 2026 session and if subsections are reintroduced we may end up seeing revisions to other portions of the bill with new legislation in 2026 so i won't be i wouldn't predict what we're going to do now in terms of what's going

[05:09:39] to kind of happen in 2026 because it's early early days but um there will be supports and and and resources rolled out um that all the school divisions will be able to utilize and benefit great thank you other questions or comments thank you miss vasquez and and kudos to your team that is a quite a impressive workload i know superintendent gullickson understands the impact to having done her share of it. Very impressive work. I have three pieces I want to

[05:10:15] ask about. First, the overdoses bill, HB 2774. Does that conform to the actions we took earlier this year, or will there be a need for us to address what we did to conform to the legislation?

[05:10:31] I'm trying to think back as we worked on the synopsis. I do believe there may be some revisions to the to the documents that have been produced and uh joe wharf is working on those um amendments to the um previously produced documents from the department that have come to the board um it's nothing substantial i believe that it is some minor minor amendments that will change in those data scientists but they will be brought back as needed to um to add the details from the bill thank you um the second thing i wanted to ask about is in the budget uh we heard from your

[05:11:05] your colleague yesterday about the math language in the budget, but another piece in the budget addresses assessment. Can you tell us, just give us the overview of the actions taken in the budget with respect to assessments? I'm actually not prepared to do that. Christina Verda is going to give you a detailed analysis of the budget. HB 1600 is linked here in the PowerPoint for you if you want to look at that in advance. But Christina, is that in June or July that Christina's going to

[05:11:38] come back? It was July, but we can move it up to June. And that's, you know, but Christina will be reviewing the budget with you and the contents of the budget. Wonderful. In particular, because of this board's responsibility for assessments, I just think it's important that the board here both, I think there was an increase in the allotment, but also there was a specification of a study and some kind of oversight of the study, all that to be going on during this calendar year so as to inform future legislative actions about assessment, which is a topic, as I say, this board's intimately involved in.

[05:12:18] So it would be helpful whenever it happens that this board be informed in some detail on that study. Superintendent Gullickson? Yes, and I will also be speaking on all things assessment to the House Appropriations Committee two days before the board meeting. So we can just do an assessment update to the board in June and probably the larger budget items in July.

[05:12:42] - And the final item, as to HB 1957, I think it's an impressive piece of legislation. You're right that it's gonna have some real impact on our divisions and be some work for all of us to make it work, but in particular, I think it's appropriate that our students have some skin in the game as to the SOL assessments.

[05:13:05] That's a new addition as to some of those courses. Already students have some skin in the game as to the high school end of year courses, but not the middle school courses that are added in here. And yet that does raise questions. So, and particularly following up on Dr. Ackerman's question about special ed kids, requirement, which will go into effect for the 26-27 school year, if I understand it correctly.

[05:13:31] So not this coming year, but the following year, that SOL assessment shall account for at least 10% of the student's final grade. Combining that with the information we heard yesterday that the anticipated changes in the standard setting process may well result in a doubling or a tripling of the percentage of students who fail their SOLs, meaning that we may have two-thirds of our students failing their SOLs, can the department address

[05:14:03] What consequences that could have for students earning, special ed students and other students earning their verified credits in those courses going forward and what we need to do to attend to that potential consequence. Well, as I said, it is very early days. We are starting that work. Grading policies are the purview of the school divisions.

[05:14:29] and interesting enough about the bills the bill language has a number of exceptions for students with disabilities this particular area did not have that carve out and so we will see if if anything is is changed in the 2026 session related to that however um as i said the department will provide supports and resources to the divisions both in the assessment area to support um the results that you were speaking about in terms of assessment of results as well as what to do to support students as they face this different challenge of the legislation but as it's early

[05:15:06] right now and we want to be thoughtful in how we plan and we don't want to put information out there that we're going to have to go back and revise we don't want school divisions to be any more confused or stressed over this bill and so we want to be thoughtful roll out information and in stages and address each component of the bill so it's now may we have a year that before the bill is implemented and we want to make sure that we prep the school divisions well in advance but there's a lot of inside work in the department that will have to be done in terms of adjusting systems revising resource documents planning and how that's going to be rolled out

[05:15:42] so it's a heavy lift for the department as well as the school divisions but we're up for the challenge well may i just miss holton yeah may i suggest that the department add this to the list potential consequences of the anticipated changes to the rating scale that this board is contemplating over the next couple of months. And I do recommend to my colleagues that you take a look at the public comments submitted by the Virginia Public Education Coalition, which includes

[05:16:20] all those stakeholder groups we've talked about school board superintendents teachers pta parents that are asking that as you consider as we consider changes to the cut scores that we contemplate the consequences including i think they identify three graduation rates funding streams that are tied to SOL scores, and the accountability framework. And so really, some of this needs to wait until we hear the recommend, all of it needs to wait until we hear the

[05:16:57] recommendations from the standard setting committees, certainly. But before this board acts on the new standard setting, which is ultimately this board's responsibility, my hope is that the department can help us think through all the potential consequences. And I've asked for that for many months now, actually, that we have a list of all the different places in the budget, all the different places in our regulations, et cetera, where SOL pass rates are implicated and that we be aware of those before we make these dramatic changes. And so this one,

[05:17:35] I would suggest that we just add to the list of potential consequences that the board may want to take into consideration as you contemplate changes. Well, I'm just going to add a piece here that considering we're discussing this particular bill um i don't hear a lot from parents in particular about things that are going on as it relates to sols but i have had overwhelming outreach on this particular legislation that parents are overwhelmingly not in support of it and i don't

[05:18:11] know if you guys looked at any of the um social media articles that were put out by or articles that were posted on social media by some local media outlets but it is shocking to me the amount of parents that are vehemently opposed this legislation um i don't know how it'll work out once we get to 2026. i i for one hope that there are some other pieces put into this to i mean many

[05:18:44] local school divisions already either require this or allow for their teachers to do this that that to me should be somewhat the autonomy of the teacher to make that decision um and so that's kind of where i i sit on this one um are there any other comments about this presentation uh mr rotherham yeah i have a i think there's many elements of this bill that are exciting it was exciting to see a bipartisan education bill um uh my thing that's my flag for you all is i think in some of the stuff on assessment quality and so forth is great 100 point scale sounds intuitively

[05:19:23] like oh that's but there's a potential that that's going to create fusion for people because i think we all anyone who went through school we have a an assumption of 100 point scale and what it means that's not necessarily going to equate with what an assessment looks like what an assessment cut score it looks like and so i think it's going to behoove us to figure out how to communicate that because i know it is a it is a well-intentioned effort to clarify if not communicate depending how it plays out it could end up actually confusing and i think that's a part of this legislation that it really behooves us to pay attention to and really learn about some best practices around um communication there yes president crazy mr rotherham i had a very um

[05:20:01] extensive conversation with folks in assessment yesterday about that very topic about the 100 point scale and how that will equate with our score our testing um sol assessment scoring um but people do understand 100 point scale is what you're often used you know you know this question is worth two points and i'm going to have 50 questions and then i'm going to get there to 100 points so we did we had a very we've had about three lengthy conversations on that same topic so it is very much on our radar madam president if anybody else wishes to speak uh i'll come back to

[05:20:34] you but i'd like uh dr northern yeah i've got a couple just observations so on the 10 percent with the sol am i to assume that districts have the decision to calculate that however they would like like it's got to be 10 but they can then decide okay if a kid gets x score then you know they they pass by our standards and so that's 10 percent could count it as as this score um you You know, you're wandering a bit outside of my area of expertise.

[05:21:08] We may need the assessment folks to answer that question. But generally, the school divisions in Virginia have maximum flexibility in those areas. But it will all depend on the types of the information we roll out as we work through developing how this bill works with our assessment system and the information we convey to school divisions because we need consistency across the state.

[05:21:32] um and so we want to make sure that we uh properly uh advise school divisions on the best course of action related to that but yeah i it's a bit of grading and assessment categories or that's a i might need the expertise of mark jennings or dora vierail to truly answer your question there yeah dr northern i'm sorry i do think that's a that's a big deal um and we should probably be collecting those data by district relative to the decisions that they make on that 10 percent um and i think my other just other comment is on page 10 i see that we're have a

[05:22:09] bunch of new things that we're required to post on the division on the video website by school by district so on having to do with the mathematics acceleration which is great um but i will say that that should i'm assuming we're already thinking about actually having to add that relative to the conversation we had earlier about reporting on the website and also i'd love to see this they you have to include the option the if parents decide to opt out which is what i was actually saying we should be thinking about that and that's a big deal and we actually are now

[05:22:43] mandated to collect the opt-out data so that's that's uh that was that was good but yeah it's a lot in here i i i will concede that we have and you guys have a lot of work to make all this happen Ms. Hulton. I just wanted to add that, Madam President, to your point about public feedback, I have been hearing plenty of feedback from the Virginia PTA and other organizations from parents about the changes to the standard setting to the grade level. And I predict that if and when we in

[05:23:22] fact go through with a decision to double or triple the failure rates up to two-thirds of our students failing the SOLs. We'll hear more. Thank you. Anybody else? Superintendent Gullickson.

[05:23:38] All right. Well, I'm going to be the outlier on this bill. We are going to implement it with great fidelity and appreciate both of the patrons for really leaning into some of the recommendations that had come out of the bipartisan work group of HP 585 and are laser focused on how do we build student agency, how do we increase rigor, how do we maximize learning time.

[05:24:05] They were very accommodating on accounting for those divisions wanting to move towards competency-based learning models and what it might look like from an agency side where we need to help schools be able to proof point with students who are ready to demonstrate mastery at different points than just the very last point of the school year.

[05:24:27] And we have a lot of work to do, that is for sure, but they are laser focused on working to improve student outcomes. And I also just want to address, while the very thoughtful and national best practices underway in our proficiency standard setting is moving forward, yes, more kids may in fact be identified as not proficient, but we are working towards being truly honest with the

[05:25:02] students of the Commonwealth that we can then target very intentionally resources, tools, and technical assistance to divisions and schools and teachers to ensure that those kids truly leave middle school, elementary school, and high school ready to succeed.

[05:25:23] And so I understand the claims that there will be more kids that are not proficient or quote failing. But the honesty is they are already not there. And so we are going to ensure that every kid is seen

and gets the supports that they need.

[05:25:42] So this bill will help us also do that. Thank you so much, Velazquez. All right. That brings us to my reminder of review of the written reports.

[05:25:58] And then discussion of current issues. Does anybody have anything that they want to comment about before we adjourn? Ms. Hulton.

[05:26:14] - Yes, thank you. I just wanted to, I don't know that we had an opportunity to join in you in welcoming our new board member and how delightful it is to have Dr. Ackerman joining us today. And also I wanted to draw everybody's attention to the written public comment.

[05:26:34] There was a recent add-on to that that I hope we'll have an opportunity to address at a future meeting, a letter from the Richmond Public Schools asking to be relieved from their MOU. I'm sure we'll hear from Superintendent Gullickson at an appropriate time on what the criteria are for that and how we respond to that.

[05:26:55] But I did wanna point out, regardless of how we formally respond to it, the letter demonstrates some really remarkable success statistics that need to be applauded and celebrated, including key achievements such as reducing chronic absenteeism. And this is last year's stats, so it's not updated yet, but basically cutting their chronic absenteeism rate in half. It was high immediately post pandemic 37%, but bringing it down to 18.6%, which was almost down to the statewide average, increasing their

[05:27:34] academic performance significantly on some of the metrics. In particular, I see that the math performance increased by more than 10 percentage points. The science increased by, doing my own math here, 12 percentage points, et cetera, et cetera.

[05:27:55] And again, they had a lot of room for improvement, but I think have made major improvement. And one thing this board has attended to over the years is issues of governance, and the board has made a remarkable turnaround on their governance structure and their operational stability as the letter identifies it.

[05:28:19] And whatever action we formally take or don't take, I encourage us all to read that letter and be sure that we take an opportunity to commend those extraordinary efforts and accomplishments. - Yes, and just so you're aware, communicated back with the superintendent and told him that we would be addressing those things in July that he's requested as our one-day board meeting in June is already pretty well packed so any other comments before we adjourn dr. Northern just miss maybe I missed it but we'll hear about the

[05:28:56] charter school update next meeting or the meeting after yes yes you have a written report right now and I have another report that will actually be a a physical report given next month. - Yes, Dr. Ackerman. - I just wanna thank everybody for the warm welcome.

[05:29:11] It's been wonderful. And to the superintendent, just how hard your team works. And I've just been overwhelmed with their reports and how much they wanna report that they can't report. And so it's just great to see the wonderful things happening at Virginia. So thank you, Mr. Rotherham.

[05:29:29] - Yeah, I just wanna just take a minute to also congratulate the new state superintendent on how much she has hit the ground running. Our last meeting was her first meeting and just the amount of the volume of stuff on her plate and yet her responsiveness to the field, her responsiveness to us, we're

hearing great reviews and she's juggling a whole lot of plates and she's doing it with aplomb and it's a difficult role to step into at any point and so I just wanted to just elevate that.

[05:30:04] I have the privilege of around the country working with a lot of state chiefs in different parts of the country, different stripes, and we're just incredibly lucky to have this one. Yeah, Mr. Rotherham, thank you for bringing that up. I think that I get lost in the day-to-day with our superintendent in terms of how we interact with one another, but I will say that it is a breath of fresh air, the amount of work that is being done.

[05:30:35] And I think from the vision that I'm getting, that the team at DOE is being truly embraced for the level of expertise that they bring every day to the jobs that they do.

[05:30:53] That's something that's, you know, when you're embraced as an employee for your expertise and your knowledge, that's thanks enough. really gives people a wonderful feeling about the job that they do and I'm seeing that on the faces of those employees at the department every day and I'm so thankful for the leadership that you are providing this department so thank you and good and if there is nothing else um Superintendent

[05:31:29] Gullickson do you have anything or nothing else we will move to adjourn well I uh thank you for all of the kind remarks and I am so impressed with our team and what we are doing to move the needle for kids. I would be remiss if I did not acknowledge just all of the great convenings that have been happening in the last week to recognize the anniversary of Brown versus Board of Education. Many of our Board of Education members have attended student driven events, as we heard yesterday, and others, including seven of our former and

[05:32:08] current governor at an event this weekend. And it is a good reminder that we have made progress, but we have a lot of work to do, including how we can best support the field in navigating some of those continued barriers from historic redlining in regards to school school division enrollment policies and what we can do to make sure that our public schools are truly public for every child. So more, more guidance to come. And so I really appreciate

[05:32:42] everyone's time and we will have a full packed June single day board meeting with more snacks because we have a lot to accomplish for kids. So thank you. Accept a motion to adjourn. Is there a second?

[05:33:02] Second. All right, we are adjourned.